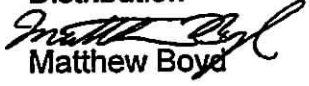

2012-005**MIAMI GARDENS POLICE DEPARTMENT**

DATE: DECEMBER 19, 2012**TO:** Distribution**FROM:** 
Matthew Boyd**SUBJECT:** Directive- Responding to and Handling of ShotSpotter Incidents

The ShotSpotter Gunshot Location System™ (SST) is intended to enhance the Department's ability to respond effectively to and investigate violent crimes involving gunfire. The system uses audio sensors placed in selected areas to identify the location of gunshots. ShotSpotter™ incidents may be replayed to hear the actual audio component of the incident, aid in the collection of evidence at crime scenes, and aid in the investigation and prosecution of crimes.

ShotSpotter™ incidents shall be dispatched in accordance with department policy and procedures pertaining to the dispatch of crimes in progress involving the use of firearms. The purpose of the system is to reduce violent crime and incidents of indiscriminate gunfire in the City of Miami Gardens and to be incorporated into the Department's overall violent crime reduction efforts.

Purpose

The purpose of this directive is to create consistent policies and procedures for the receipt, dispatch, and investigation of gunfire incidents that are received by agency personnel using the ShotSpotter Flex Gunshot Location System™.

ShotSpotter Alerts are received and categorized in the following manner:

- a. Multiple Gunshots = two or more gunshots.
- b. Single Gunshot = single gunshot
- c. Possible Gunfire = When the system and the monitoring center cannot determine with certainty that the sound captured by the acoustic sensors is actually a gunshot.

1. COMMUNICATIONS CENTER RESPONSIBILITY

- a. Upon being notified of a gunshot(s) being detected by the SST, the assigned operator shall enter the call into OSSI CAD as a 14 SF (Shots Fired); utilize the

ShotSpotter™ source code (SST); and enter into the call narrative the applicable alert category - Multiple Gunshots, Single Gunshots, or Possible Gunfire. The dispatcher shall also enter the case number in the SST incidents portal to document the MGPD response. All SST calls shall be dispatched in accordance with the department policy that governs priority responses to crimes in progress.

- b. The dispatcher shall provide all available information, as recorded in the comments to the responding units. At a minimum, this information shall include the number of shots detected, whether gunshots were fired from a stationary or moving suspect, and any other relevant information.
- c. In order to enhance the accuracy of the gunshot location system, dispatchers shall record whether or not the detection was confirmed to be the result of gunshots in the comments of the CAD. Additionally, dispatchers handling any call for service regarding gunshots shall ascertain from the primary unit on the scene whether the shooting occurred outdoors or indoors. The gunshot location system can only detect events that occur outdoors. This information shall be listed in the comments section, and is useful for analyzing the effectiveness of the gunshot location system.

2. RESPONDING OFFICERS RESPONSIBILITY

All personnel shall be mindful that gunshot location system technology is capable of providing units with notification that gunshots have been fired in advance of any calls for service being received at the Communications Center. This technology is also capable of providing a more specific and reliable location of gunshots than those reported by civilians that heard, but did not see, the discharge of a firearm. The enhanced rapid response to potential shooting incidents will enhance not only the ability to apprehend armed suspects, either on the scene or in the immediate flight from the scene, but will also increase the likelihood of securing witnesses at the scene, as well as preserving evidence. Rapid response may also be critical in the preservation of life.

- a. All Patrol Officers who are equipped with a Mobile Data Terminal (MDT) shall log into the ShotSpotter Flex Alerts™ portal at the beginning of their shift. This allows for rapid notification of gunshot information within 30 to 60 seconds of an incident. Officers shall immediately notify the primary dispatcher of their response to the alert, request a backup, and tactically respond to the location of the alert.
- b. The Units dispatched to a gunshot detection incident by Communications shall respond in the same manner as any violent crime in progress. After arriving on the scene, personnel shall conduct a thorough canvassing of the area in order to locate any potential suspects, shooting victims, witnesses, and/or evidence. Units shall advise the dispatcher of the exact location of any shell casing recovered, or

any other evidence of firearms discharge; so that the dispatcher can update the event chronology. The primary officer must complete an incident report on all ShotSpotter related calls. This report shall be comprehensive, noting any evidence recovered, injuries sustained by any victims, or other pertinent information. This information is useful for evaluating, and improving upon, the accuracy of the gunshot location technology.

3. INVESTIGATIONS

- a. Investigators shall be trained and have access to the ShotSpotter Flex™ system. In the event an Investigator is assigned an investigation that may have been detected by the ShotSpotter™ system, the investigators should review the incident and save all audio and visual depictions of the incident. When the information is available, investigating officers should replay any audio of the incident in an effort to recreate the crime scene, including a timeline of rounds discharged to potentially determine the number of shooters.
- b. Investigating officers shall be trained to access and shall utilize the system to extract incident data, evaluate, and present this information in preparation for prosecuting such cases.
- c. For investigative and prosecution purposes, investigators shall know the process for acquiring detailed forensic reports of an incident and the securing of expert witnesses relative to acoustical surveillance.

Any questions pertaining to Shotspotter™ should be directed to the Shotspotter™ program manager, Captain Eduardo Martinez.

The Chief of Police or his designee may modify the processes outlined in this directive under extenuating circumstances.

MB/al

City of Miami Gardens

18605 NW 27th Avenue
Miami Gardens, Florida 33056



Mayor Rodney Harris
Vice Mayor Reggie Leon
Councilwoman Shannon Campbell
Councilwoman Shannan Ighodaro
Councilwoman Linda Julien
Councilman Robert Stephens III
Councilwoman Katrina Wilson

MEMORANDUM

TO: Cameron D. Boush, City Manager
FROM: Delma K. Nouri-Ratt, Chief of Police
DATE: June 18, 2021
RE: Authorized Access to ShotSpotter Insight Analytical Applications

PURPOSE: To execute the attached Authorized Access Form to give the Bureau of Alcohol, Tobacco, Firearms and Explosives (ATF), access to the City of Miami Garden ShotSpotter Insight Analytical applications.

BACKGROUND: ATF Agents and Intelligence Analysts, along with our assigned Task Force Officers, need to make sure they are focused on making the highest impact on violent crime. In order to enhance their ability to identify, investigate and incarcerate the most violent offenders within the City, ATF would add ShotSpotter Insight as another layer of intelligence to their combined Crime Gun Intelligence arsenal. There is no fiscal impact to the City for granting ATF the aforementioned access. During the May 12, 2021, City Council Meeting, the City Council authorized you to execute the attached Authorized Access form. Resolution #2021-051-3606 is also attached.

RECOMMENDATION: Your Signature.

DK Director's Initials

N/A Finance Director's Initials

DKNP/al
Attachment (2)



The City of Miami Gardens on behalf of the Miami Gardens Police Department ("Customer") is a current, licensed end user of ShotSpotter, Inc.'s ("ShotSpotter") ShotSpotter® Gunshot Detection, Location and Forensic Analysis Service (the "Services").

In accordance with the Flex Services Agreement (the "Agreement") between Customer and ShotSpotter, Customer is permitted to share Data, as that term is defined in the Agreement, with other law enforcement agencies for the purposes of investigating and prosecuting crimes detected by the ShotSpotter system.

In order to assist in such investigations, ShotSpotter agrees that Customer may grant login access to the Services by the Federal or other law enforcement agency(ies) listed below for the specified ShotSpotter applications (Respond, or Investigator Portal):

Agency	ShotSpotter Applications
ATF (see attached list of ATF personnel)	Insight and Respond for Miami Gardens Police

By signing below, Customer acknowledges and agrees that Customer shall be responsible for access by such agencies and ensuring that the agencies understand and agree that such access or sharing of the Data is to be used strictly for the purposes of investigation and prosecution of crimes detected by the ShotSpotter system.

Access to the Services by any agencies not listed above must be approved in writing by ShotSpotter via an additional Authorized Access form.

ACKNOWLEDGED AND AGREED BY:

<CUSTOMER>

APPROVED BY:**SHOTSPOTTER, INC.**

Accepted By (Signature)

Accepted By (Signature)

Cameron D. Benson

Printed Name

Printed Name

City Manager

Title

Title

Date

Date

Reviewed as to Form and Legal Sufficiency:



Sonja K. Dickens, City Attorney

Attest:



Mario Bataille, City Clerk

Special Agent in Charge Robert Cekada (Miami) – Robert.Cekada@atf.gov
Assistant Special Agent in Charge Chris Robinson (Miami) – Christopher.Robinson@atf.gov
Assistant Special Agent in Charge Eric Mercer (Miami) – Eric.Mercer@atf.gov
Group Supervisor Jennifer Meehan (Miami) – Jennifer.Meehan@atf.gov
Group Supervisor Kyle Himel (Miami) – Kyle.Himel@atf.gov
Group Supervisor Jelissa Orcinolo (Miami) – Jelissa.Orcinolo@atf.gov
Group Supervisor Kelly Frazier (Miami) – Kelly.Frazier@atf.gov
Resident Agent in Charge Jason Stankiewicz (Miami) – Jason.Stankiewicz@atf.gov
Internal Revenue Service Brian Dominguez (Miami) – Brian.Dominguez@atf.gov
Internal Revenue Service David Giraldi (Miami) – David.Giraldi@atf.gov
Internal Revenue Service Arthur Giraldi (Miami) – Arthur.Giraldi@atf.gov
Internal Revenue Service Will Sullivan (Miami) – Will.Sullivan@atf.gov
Internal Revenue Service Ricardo Marrero (Miami) – Ricardo.Marrero@atf.gov

RESOLUTION NO. 2021-051-3606

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF MIAMI GARDENS, FLORIDA, AUTHORIZING THE CITY MANAGER TO EXECUTE THE SHOTSPOTTER AUTHORIZED ACCESS FORM TO PROVIDE THE BUREAU OF ALCOHOL, TOBACCO, FIREARMS AND EXPLOSIVES AGENTS ACCESS TO SHOTSOPTTER INSIGHT ANALYTICAL APPLICATIONS; A COPY OF WHICH IS ATTACHED HERETO AS EXHIBIT A; PROVIDING FOR THE ADOPTION OF REPRESENTATIONS; PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the United States Department of Justice, Bureau of Alcohol, Tobacco, Firearms and Explosives (ATF) is requesting authorization to gain access to the ShotSpotter Insight Analytical applications, and

WHEREAS, ATF Agents and Intelligence Analysts along with our assigned Task Force Officers, need to make sure they are focused on making the highest impact on violent crime., and

WHEREAS, in order to enhance their ability to identify, investigate and incarcerate the most violent offenders in the City of Miami Gardens, they would add ShotSpotter Insight as another layer of intelligence to the combined Crime Gun Intelligence arsenal (MGPD Crime Analysis, NIBIN Enforcement Support System, Firearms Tracing, Social Media and Confidential Human Sources) to ensure we target the most violent offenders, and

WHEREAS, there will be no cost to the City of Miami Gardens for granting ATF access to the ShotSpotter application,

NOW, THEREFORE, BE IT RESOLVED BY THE CITY COUNCIL OF THE CITY OF MIAMI GARDENS, FLORIDA AS FOLLOWS:

Section 1: ADOPTION OF REPRESENTATIONS: The foregoing Whereas paragraphs are hereby ratified and confirmed as being true, and the same are hereby made a specific part of this Resolution.

Section 2: AUTHORIZATION: The City Council of the City of Miami Gardens hereby authorizes the City Manager to execute the ShotSpotter Authorized Access Form to provide ATF Agents access to ShotSpotter Insight Analytical applications and any updates or addenda as it relates to access to ShotSpotter Insight Analytical applications as outlined in the agreement.

Section 3: INSTRUCTIONS TO THE CITY CLERK: The City Clerk is hereby authorized to obtain two (2) fully executed copies of the subject Agreement with one to

be maintained by the City, and one to be delivered to the Florida Division of Emergency Management.

Section 4: EFFECTIVE DATE: This Resolution shall take effect immediately upon its final passage.

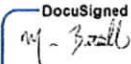
PASSED AND ADOPTED BY THE CITY COUNCIL OF THE CITY OF MIAMI GARDENS AT ITS REGULAR MEETING HELD ON MAY 12, 2021.

DocuSigned by:

B912A2FF5F0C4ED

RODNEY HARRIS, MAYOR

ATTEST:

DocuSigned by:

C4408C142F1C48B

MARIO BATAILLE, CMC, CITY CLERK

PREPARED BY: SONJA KNIGHTON DICKENS, CITY ATTORNEY

SPONSORED BY: CAMERON BENSON, CITY MANAGER

Moved by: Councilman Stephens
Seconded by: Councilwoman Campbell

VOTE: 5-0

Mayor Harris	Yes
Vice Mayor Leon	Absent
Councilwoman Campbell	Yes
Councilwoman Ighodaro	Absent
Councilwoman Julien	Yes
Councilman Stephens, III	Yes
Councilwoman Wilson	Yes

**Agreement for Purchasing Existing
ShotSpotter Gunfire Location, Alert and Analysis System
With an Option to Expand Coverage**

Agreement ID: MIAGRDNFLF09172015
Prepared on September 17, 2015
for: Miami Gardens Police Department



Submitted by:

Phil Dailly – Director, Southeast Region

mobile: +1.704.470.5501
fax: +1.650.887.2106
phild@shotspotter.com

Corporate Headquarters
7979 Gateway Blvd., Suite 210
Newark, CA 94560-1156
www.shotspotter.com

Pricing, Terms, Conditions

The pricing provided is a **firm fixed price** quote which expires December 31, 2015.

The price as listed herein does not include any state or local sales taxes. Customer is responsible for notifying SST if the price needs to be adjusted for sales taxes.

Existing Coverage Area Purchase:

ShotSpotter Coverage = 4.5 Square Miles (currently installed)

ShotSpotter Hardware including 72 sensors	\$ 540,000
---	------------

ShotSpotter Software – 3-Year Term License	Included
--	----------

Optional – Purchase of Additional Square Miles of Coverage:

ShotSpotter Coverage = 1.0 Square Mile

ShotSpotter Hardware including sensors	\$ 180,000 per Square Mile
--	----------------------------

ShotSpotter Software – 3-Year Term License	Included
--	----------

Accompanying Exhibit

An exhibit specifying the item listed below is incorporated herein by reference and constitutes an integral part of this agreement. Unless specifically so-stated above, should there be any question of precedence between the exhibit and this agreement, then the exhibit, a single consolidated document shall be superior to the proposal itself. Items addressed within the consolidated document are:

- ShotSpotter Flex Agreement – Standard Terms, Conditions and Support (Domestic)

Special Terms:

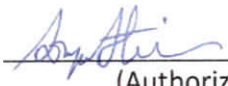
Under this agreement, SST, Inc. and the City of Miami Gardens would co-own the gunfire data collected by the system. SST, Inc. retains the right to resell gunfire data.



ShotSpotter Purchase Agreement
Miami Gardens Police Department
ShotSpotter Gunfire Location, Alert and Analysis System

IN WITNESS THEREOF, the parties have caused this Agreement to be executed by their duly authorized representatives on the date(s) shown below.

SHOTSPOTTER, INC.

By: 
(Authorized Signature)

Name: Sonya Stricklen

Title: VP Finance + Controller

Date: 12/21/2015

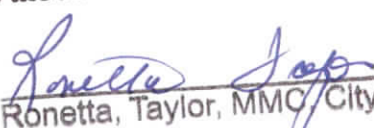
CITY OF MIAMI GARDENS, FL

By:  
(Authorized signature)

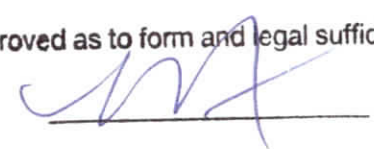
Name: Cameron D. Benson

Title: City manager

Date: 12/17/15

Attest: 
Ronetta, Taylor, MMC, City Clerk

Approved as to form and legal sufficiency


Monica Barnes, Assistant City Attorney



ShotSpotter Agreement – Standard Terms, Conditions and Support (Domestic)

SST, Inc. (also “ShotSpotter,” “we,” “us,” or “our”) and the end-user customer (also “Customer,” “you” or “your”) agree to the following Standard Terms, Conditions and Support Agreement (hereinafter, “Agreement”).

The following Agreement is an essential part of the “Purchase Documents” (which term shall include this Agreement and all executed proposals and purchase orders, together with all attachments and appendices) under which you purchase a ShotSpotter Gunshot Location System and services identified in the Purchase Documents and described herein (“ShotSpotter Flex System” or “System”). Your installation, activation, or use of any part of the System (and/or signature on the purchase order and/or agreement) shall constitute your representation that you have read all the terms and conditions of this Agreement, and your acceptance of them as an integral part of the Agreement and your purchase or order of the System. If you do not agree to be bound by these terms and conditions, do not access or use any part of the System. In consideration of the parties’ mutual undertakings set forth in the Purchase Documents and in this Agreement, you and we agree as follows:

1. PURCHASE OF THE SHOTSPOTTER GUNSHOT LOCATION SYSTEM

In consideration of the parties’ mutual undertakings set forth in the Purchase Documents and in this Agreement, you and we agree as follows:

For purposes hereof, the ShotSpotter Flex System shall consist of (i) hardware components supplied by SST as specified on proposals or purchase orders, duly executed and issued from time to time during the term hereof by an authorized officer of Customer and more specifically described in Section 3 (hereinafter, collectively, “Flex System Components”); (ii) object-code versions of software and firmware supplied by SST and installed on and used in connection with Flex System Components, as specified in the Purchase Documents (collectively, “Software”); and (iii) services including, without limitation, project management, system engineering, installation, and acceptance services, providing access by the Customer to Reviewed Alerts delivered via a password-protected internet portal (“Alert Console”) and user interface supplied by SST, and providing access to historical Reviewed Alerts and incident information via the internet portal (collectively, “Service”), any and all of which may be referred to herein as “Products,” and all of which, together, may be referred to herein as a “ShotSpotter Flex System” or a “System.” Purchase Documents must be issued by Customer to SST and shall at a minimum include a total amount and refer to a specific SST proposal or quotation identification number. SST reserves the right to accept or reject each order.

Reviewed Alerts consist of data for gunfire incidents, detected by the ShotSpotter Flex System and reviewed by a SST incident reviewer employee (see Exhibit A).

2. LICENSE. The following sets forth the terms and conditions of your non-exclusive license to use (i) the firmware embedded in ShotSpotter remote acoustic sensor devices; and (ii) ShotSpotter Alert Console™ client software, installed and operated locally on one or more of your workstation computers (collectively, the “License”). Each, and, collectively, all, of those software components (together with associated media, and printed materials and documentation supplied with such components), will be referred to as the “Software” and Data (as defined herein).

This License creates important legal rights and obligations, so please read it carefully before installing or using the Software or Data. This License constitutes an offer by us to you. **By manifesting electronically your assent to these terms, installing into permanent memory or any storage device, loading into temporary memory, copying, or using any component of the software,, or by issuing a purchase order or signing a purchase agreement, you agree to be bound by the terms and conditions of this license.** If you do not agree to be bound by the terms of this License, do not issue or execute a Purchase Document, or install, load or use the Software and Data, and return all parts of the unused Software in its original packaging to ShotSpotter.

For so long as you do not violate any of the terms of this License and other SST terms and conditions, you may use for your own internal purposes, only in connection with your use of a ShotSpotter Flex System acquired by you, machine-readable, object code versions of: (i) firmware for each remote acoustic sensor device purchased with the System specified in the purchase order, licensed for operation only on the device(s) on which it originally shipped (“Device Licenses”); (ii) ShotSpotter Alert Console™ or ShotSpotter Alert Console-Mobile™ client software. Any rights not expressly granted to you herein are reserved by us or our suppliers.

A. RIGHTS IN DATA. All data, information, and electronic files created, generated, modified, compiled, displayed, stored or kept in the course of providing the System and Service, including, without limitation, information in Reviewed Alerts accessible through the Software, and other data or information accessible, generated, compiled or displayed through the Software or System (“Data”) remains the sole and exclusive property of SST, regardless of where or on whose device(s) any such Data may be stored or kept.

SST grants to the Customer the rights to make copies of, distribute and use Reviewed Alerts within its own organization, exclusively for its own internal purposes, for purposes of detecting and locating gunfire, routine archival



Standard Terms, Conditions and Support (Domestic)

recordkeeping, evidence preservation, and evidentiary purposes.

If the customer purchases the exclusivity option, then SST will not distribute to any third party any Data related to or generated by ShotSpotter Gunshot Location System in Customer's coverage area, unless in response to a valid order or subpoena issued by a court or other governmental body, or as otherwise required by law.

SST expressly reserves the rights to copy, publish, display, adapt, modify, translate, perform publicly, make works derived from, transfer, sell, offer for sale, and to use any and all Data (including, without limitation, Reviewed Alerts) for any purpose, and to authorize, license, and sublicense others to do any or all of the same. The parties shall comply with Chapter 119, Florida Statutes, Florida Public Records Laws.

B. RESTRICTIONS. The System, Software and Data are our proprietary products, may incorporate components supplied to us under license by third-party suppliers, and may be protected by United States patent, trade secret, copyright law and international treaty provisions. All such rights in and to the System, Software and Data and any part thereof are the property of us or our suppliers. By virtue of this License, you acquire only the right to use the System, Software and Data in accordance with this Agreement, but otherwise acquire no license, title or ownership rights, express or implied, in or to the Software or Data, or any right to use or practice any of our patents, copyrights, trademarks, or trade secrets, all of which rights are reserved expressly by us or our suppliers. You may not make any copies of the written materials or documentation that accompanied any component of the System or Software, or use them, or any other information concerning the System or Service that we have designated as confidential, for any purpose other than bona fide use of the System, Service or Software for the specific purposes contemplated herein, nor allow anyone else to do so.

You shall not, without our express written consent, which may be withheld or conditioned in our sole discretion: (i) modify, adapt, alter, translate, copy, perform or display (publicly or otherwise) or create compilations, derivative, new or other works based, in whole or in part, on the System, Software or Data, or on the Service; (ii) merge, combine, integrate or bundle the System, Software or the Data, in whole or in part, with other software, hardware, data, devices, systems, technologies, products, services, functions or capabilities; (iii) transfer, distribute, make available the System, Service, Data, or Software to any person other than the specific end-user customer identified to SST in the Purchase Documents, sell, resell, sublicense, lease, rent, or loan the System, Service, Data, or Software, in whole or in part, or (iv) provide use or permit operation of any of the System, Service, Software or Data by any person other than the original end-user customer designated in the Purchase Documents, nor in or through any application service provider, service bureau, rental or time-sharing

arrangement; (v) disassemble, decompile, or otherwise reverse engineer or attempt to reconstruct, derive, or discover, any source code, underlying ideas, algorithms, formulae, routines, file formats, data structures, programming, routines, interoperability interfaces, drawings, or plans from the System, Data or Software, or any data or information created, compiled, displayed, or accessible through the System, in whole or in part; or (vi) remove, modify or obscure any identification or proprietary or restrictive rights markings or notices from the System, Data, Software or any component thereof.

SST and its licensors retain all ownership of all intellectual property rights in and to all Data, Software, all computer programs, related documentation, technology, knowhow and methods and processes embodied in or made available to you in connection with the System and Service, including, without limitation, all patent rights, copyrights, trade secret rights, trademarks and service marks. All rights not expressly granted to you herein are reserved by SST. You shall take all reasonable measures to protect SST's intellectual property rights in the System, Service and Software, including providing assistance and measures as are reasonably requested by SST from time to time.

You are hereby placed on notice that alteration or removal of copyright management information (including, without limitation, licensor's name and other identifying information, name of the System or Service, the terms and conditions of this License, and identifying numbers or symbols) embodied in or associated with the System or Service is prohibited, because such conduct may cause others to infringe our rights in and to the System, Service and/or Software. You may also not obscure or remove any confidentiality, patent, trademark or copyright notices on any component of the Service, or any documentation.

C. TERMINATION. You agree that your right to use the System, Service, Software and Data will terminate automatically if you violate any of the terms of this License, or fail to timely pay any sums you owe to us or resellers or integrators of our Service, or fail to renew the Service upon expiration of the Service term. In the event of termination, your access to the Data and Software will be terminated, and SST will cease delivering Reviewed Alerts, and disable your access to the Service and Data. Customer agrees that SST shall not be liable to Customer nor to any third party for any suspension of the Service resulting from Customer's nonpayment of fees as described in this section.

D. MODIFICATION TO OR DISCONTINUATION OF THE SERVICE. SST reserves the right at any time and from time to time to modify, temporarily or permanently, the Software or Service (or any part thereof). In the event that SST modifies the Software or Service in a manner which removes or disables a feature or functionality on which Customer materially relies, SST, at Customer's request, shall use commercially reasonable efforts to restore such functionality to Customer. In the event that SST is unable to substantially restore such functionality, Customer shall have



the right to terminate the Agreement and receive a pro-rata refund of the annual Service fees paid under the Agreement for use of the Service which was paid for by Customer but not yet furnished by SST as of the date of such termination. Customer acknowledges that SST reserves the right to discontinue offering the Service at the conclusion of Customer's then current term. Customer agrees that SST shall not be liable to Customer or to any third party for any modification of the Service as described in this section.

E. OTHER RESTRICTIONS. You acknowledge and agree that the source code and internal structure of the System, Software, Data and Service, as well as documentation, operations manual and training material are our confidential property, and trade secrets, the value of which would be destroyed by disclosure to the public. Use by anyone other than you of the System, Software, Service, documentation, and Data is prohibited, unless pursuant to a valid assignment under this Agreement. You may not sell, resell, sublicense, rent, lease, or otherwise transfer the System or Software, without the express, prior written permission of ShotSpotter.

3. LIMITED EXCLUSIVE WARRANTY. Provided that you comply with your obligations under the terms and conditions stated herein, we warrant that the System and Software (as defined herein) will be free of defects in workmanship which materially impair the functioning of the System, Service and Software in substantial conformity with the specifications documentation accompanying the Service.

The Software covered under this limited exclusive warranty consists exclusively of ShotSpotter Alert Console software and user interface, installed and operated locally on customer's computers and devices supplied by SST for your use by on and in connection with a ShotSpotter System, subject to the terms and conditions of the License between you and us.

A. REVIEWED ALERT SERVICE LEVELS. As regards to sonic event review and alert services, subject to the Customer's compliance with its obligations hereunder, and to the disclaimers and limitations set forth in Exhibit A, and in Sections 5(C), 6, 7, 13 and 15 of this Agreement, we agree to provide the service levels forth in Exhibit A, attached hereto.

B. SYSTEM CONFIGURATION AND SERVICE LEVELS.

As regards to System configuration, subject to the Customer's compliance with its obligations hereunder, and to the disclaimers and limitations set forth in Exhibit B, and in Sections 5(C), 6, 7, 13 and 15 of this Agreement, we agree to provide the service levels set forth in Exhibit B, attached hereto.

C. EXCLUSIONS FROM THE EXCLUSIVE LIMITED WARRANTY. Such ShotSpotter System Components and Software **do not include (and this limited exclusive warranty does not cover):** installation, engineering, acceptance, testing, or integration services not actually performed by ShotSpotter or its subcontractors; any hardware, computer, equipment or software not actually supplied by SST for your use in connection with a ShotSpotter Flex System; power sources or power wiring, connections, wiring, switches, computer and telecommunications equipment and other facilities used to transmit event data from sensors to the computer on which is installed the Software, or to send event reports to terminal devices in the field (e.g., to officers' mobile computing devices or telephones); nor does it include third party network, power or communications equipment connected to ShotSpotter-supplied equipment, or related software or firmware.

This limited exclusive warranty also expressly excludes: ordinary wear and tear, co-channel, adjacent channel, spurious or other radiofrequency or electromagnetic interference caused by emissions from other transmitters or devices, or unknown or natural causes; loss or damage caused by misuse, training, criminal activity, civil unrest, terrorism or combat conditions, explosion, nuclear radiation, release or electromagnetic pulse, hazardous materials release, lightning, electrical surge, theft, vandalism, tampering, animals, fire, impact, wind, flood, abrasion, liquid, or severe weather conditions; or other loss, damage, events, or circumstances outside SST's reasonable control after installation and/or delivery. (Please refer to section 4.F. *Out of Scope Services* for information regarding SST's process for remediating occurrences such as those described in this paragraph which fall outside of the scope of its Limited Exclusive Warranty.)

This Limited Exclusive Warranty applies only to the original purchaser of a ShotSpotter Flex System, and may not be assigned. This Limited Exclusive Warranty does not apply to losses or damages to Products that occur in shipment to or from us. Further, this Limited Warranty shall not cover losses or damage to the Products that we determine resulted from defective installation or operation of any ShotSpotter Flex System Component or Software by you, or anyone other than SST, including any ShotSpotter Flex System reseller or integrator; failure to perform required preventative maintenance of Products such as tuning, level setting, or battery replacement; relocation, removal, disconnection, modification or alteration of any component of the Products; merging, combining, integrating or bundling the Software or any component of the System, in whole or in part, with other software, hardware, devices, systems, technologies, products, services, functions or capabilities without first notifying and obtaining approval from us; operation by anyone other than competent and qualified personnel in accordance with any operating instructions furnished by us; or any use in any manner or for any purpose



ShotSpotter Agreement – Standard Terms, Conditions and Support (Domestic)

for which the Products are not designed or reasonably suited, nor shall it apply to the extent that any defect or malfunction relates to meeting or conforming to any instruction, design, direction or specification furnished by the Customer, any of which shall void this Limited Exclusive Warranty.

In fulfillment of this warranty, we reserve the rights to either repair or replace, at our sole discretion, any defective component, to substitute components of equal quality at the time of replacement or repair, and to use reconditioned components.

During the applicable Warranty Period, all labor and materials will be provided without charge to you. Products repaired or replaced by SST under warranty will continue to be warranted according to the provisions of this Limited Warranty for the duration of the initial Warranty Period. Products returned and determined to be out of warranty will be repaired or replaced on a time and materials basis for parts and labor within a reasonable time upon receipt of your purchase order for such services. Products returned during the warranty period and found not to be defective following inspection by us will be subject to our then-current evaluation charges. We will return the Products to you after repair or replacement by the carrier and transportation method chosen by SST on our standard shipping terms.

D. OTHER WARRANTY. SST warrants that the Service, Data and Software shall be free of viruses, Trojan horses, worms, spyware, or other malicious code or components.

The limited exclusive warranties expressly set forth in this Agreement are the only warranties made to you and are provided in lieu of any other warranties (if any) created by any documentation or packaging, or otherwise express or implied. These limited exclusive warranties give you specific legal rights, and you may also have other rights which vary by jurisdiction.

4. SST SUPPORT. During the term of the Services, SST will make commercially reasonable efforts to promote Customer's successful utilization of the System and Service, including but not limited to providing Customer with user guides, online help, online training presentation, and online training sessions (as available). SST will provide reasonable efforts to respond via email to requests for support relating to incident classification within 8 hours of the request.

In addition, SST will use commercially-reasonable efforts to respond to other support requests within 24 hours of receipt of the request during the period of 8am to 5 pm Monday through Friday. The e-mail support specialist shall be responsible for receiving Customer reports of missed incidents, or errors in the Service, and, to the extent practicable over email or telephone, making commercially-reasonable efforts to assist the Customer in resolving the Customer's reported problems. In the event the problem cannot be resolved telephonically, then SST will use

commercially-reasonable efforts to restore functionality of the Service to Service specifications within 72 business hours of receipt of the report.

A. FORENSIC REPORTS. SST, at the specific request of the customer, will produce and provide a maximum of two (2) detailed incident forensic reports per mile, per year, for any ShotSpotter detected incidents, including Reviewed Alerts, if such information is deemed by the customer to be valuable to the customer for investigation follow-up, prosecutorial requirements, or after action review.

Such reports must be requested a minimum of 5 days in advance of when needed, and all such requests must be in writing and addressed to the SST Customer Service Department. Customer should expect delivery of these reports within 5 days after receipt of the request. Additional reports are available within 72 hours of the receipt of an approved purchase order in the amount of \$3,500 per additional report. This benefit shall only be available to Customer if Customer is fully current with payments due under this Agreement. In the case that Customer is not current with their payments, then forensic reports shall not be generated nor provided to Customer until Customer becomes current with its payment obligations.

B. EXPERT WITNESS SERVICES. SST offers reasonable expert witness services. The Customer will be responsible for all travel and per diem reimbursement. At the specific request of the customer, SST will provide individual(s) for the purposes of expert witness testimony for any ShotSpotter detected incidents, including Reviewed Alerts, for which the incident information is deemed by the customer to be valuable to the customer's prosecutorial requirements. Customer understands that SST undertakes to provide individuals whose qualifications are sufficient for such services, but does not warrant that any person or his or her opinion will be accepted by every court. SST requires at least fourteen (14) days prior notice of such a requirement in writing from the Customer. Customer must include dates, times, specific locations and a point of contact for SST personnel. Due to the nature of legal proceedings, SST cannot guarantee that its services described in this section shall produce the outcome, legal or otherwise, which Customer desires. Payment for expert witness services described shall be due and payable when services are rendered regardless of the outcome of the proceedings.

C. OUT-OF-SCOPE SERVICES. From time to time, should circumstances arise which cause a sensor, server or software malfunction outside the scope of the limited warranty described in 2.C. above, SST may choose to submit estimates, quotations, or *pro forma* invoices (an "Out-of-Scope Service Estimate") to Customer to remediate, repair, or otherwise provide service (the "Out-of-Scope Service") on an "à la carte" basis at its then-prevailing fee schedule. ShotSpotter shall not be obligated to provide such estimates, and Customer shall not be obligated to accept those Out-of-Scope Service Estimates, but may do so, at its own discretion. When Customer accepts such Out-of-Scope



Services Estimates, SST shall perform the Out-of-Scope Services described therein on the schedule and for the fees described therein. Customer's acceptance of the Out-of-Scope Service Estimate shall constitute its agreement to pay ShotSpotter the fees described in the estimate for services rendered on the terms described therein. Customer acknowledges that, although it is solely in its (Customer's) discretion to approve or disapprove of such Out-of-Scope Service Estimates, an accumulation of such estimates which have not been approved may require additional time to repair if all approved later at the same time, and system performance may suffer when Out-of-Scope Services have not been performed.

5. TERM, RENEWAL

A. TERM AND COMMENCEMENT. The Software and Service term shall be specified in the Purchase Document and will commence on the date that the Software and Service are available to the Customer via the Alert Console.

B. RENEWAL. The Software and Service may be renewed for successive periods of one year each, in accordance with the following procedure. Not later than thirty (30) days prior to the expiration of the Software and Service term then in effect, Customer shall issue a purchase order and tender payment in full for the next annual renewal (unless otherwise agreed in writing by SST), and the term shall be renewed for another year. SST shall provide Customer with renewal fees, terms and conditions for the next successive renewal term upon Customer's request but no later than 90 days from the expiration date. Customer acknowledges that the Software and Service fees, terms and conditions and service levels hereunder are subject to change and that such fees, terms and conditions, and service levels may vary from those applicable to this Agreement in successive renewal terms.

If Customer fails to renew in a timely manner and hence allows the Software and Service term to expire then the Service will terminate in accordance with Section 2. C. Customer may reinstate Software and Service by paying to SST 150% of the then-current Software and Service fees (recertification) for each and every year for which such fees were not paid, in addition to the then-current maintenance fee for the upcoming one-year period,

however Customer may not have access to any Reviewed Alerts that they would have had access to during the lapsed period.

C. COMMERCIAL CARRIER DATA SERVICES. The ShotSpotter Flex System may use wired, wireless or cellular wireless acoustic sensor communications which necessitates the existence of a real-time data communications channel from each sensor to the hosted servers via a commercial carrier. The unavailability or deterioration of the quality of such wired, wireless or wireless cellular communications may impact the ability of SST to provide the Service. In such circumstances SST will use commercially reasonable efforts

to obtain alternate wired or wireless cellular communications or adjust the coverage area by up to 10%. In the event SST is unable to do so, SST will terminate the Service and refund a pro-rata portion of the annual Service fee to Customer.

6. IP INFRINGEMENT; EXCLUSIVE REMEDY.

Subject to the terms and conditions hereof, SST agrees to defend and indemnify Customer (provided it is the actual End-user Customer of the System, Software and Service) from and against losses, suits, damages, liability and expenses (including reasonable attorney fees) arising out of a claim asserted in a lawsuit or action against the end-user customer by a third party unrelated to the customer, in which such third party asserts a claim that the System, Service and/or Software, when used in accordance with SST's specifications and for the purposes intended, infringes any United States patent which was issued by the U.S. Patent and Trademark Office, or United States copyright which was registered by the U.S. Copyright Office, as of the effective date of Customer's agreement to purchase the ShotSpotter Flex System.

Provided, however, that SST shall have the right to choose counsel to defend such suit and/or action, and to control the settlement (including determining the terms and conditions of settlement) and the defense thereof, and that Customer shall provide SST with reasonably prompt written notice of any such suit or action, and of any oral, written or other communication or other information or circumstances of which Customer becomes aware that could reasonably be expected to lead to such a suit or action (including any and all cease and desist demands or warnings, and offers or invitations to enter license agreements), and shall provide SST all reasonable assistance and information in connection with SST's investigation and defense of any claim of infringement.

Further provided, however, that this section shall not apply and SST shall have no obligation to defend and indemnify Customer in the event the Customer or a reseller, integrator, service provider or supplier modifies, alters, substitutes, or supplements any of the System, Service, or Software, or to the extent that the claim of infringement arises from or relates to the integration, bundling, merger or combination of any of the same with other hardware, software, systems, technologies, or components, functions, capabilities or applications not licensed by SST as part of the Service, nor shall it apply to the extent that the claim of infringement arises from or relates to meeting or conforming to any instruction, design, direction or specification furnished by the Customer, nor to the extent that the System, Service or Software are used for or in connection with any purpose, application or function other than detecting and locating gunshots exclusively through acoustic means.

If, in SST's opinion, the System, Service, or Software may, or is likely to become, the subject of such a suit or action, does become the subject of a claim asserted against a customer in



a lawsuit which SST is or may be obliged to defend under this section, or is determined to infringe the foregoing patents or copyrights of another in a final, non-appealable judgment subject to SST's obligations under this section, then SST may in full and final satisfaction of any and all of its obligations under this section, at its option: (1) procure for Customer the right to continue using the affected System, Service or Software, (2) modify or replace such System, Service or Software to make it or them non-infringing, or (3) refund to the purchaser a pro-rata portion of the annual Service price paid for the Service.

The foregoing section states the entire liability of SST and customer's and its suppliers' exclusive remedy for or relating to infringement or claims or allegations of infringement of any patent, copyright, or other intellectual property rights in or to the system, system components, and software. This section is in lieu of and replaces any other expressed, implied or statutory warranty against infringement of any and all intellectual property rights.

7. LIMITED WARRANTIES EXCLUSIVE:
DISCLAIMERS IMPORTANT; PLEASE READ CAREFULLY

To the maximum extent permitted by applicable law, the limited warranties expressly set forth above are exclusive, and in lieu of all other warranties, whether written, oral, express, implied or statutory. There are no warranties that extend beyond those expressly set forth herein, and no prior statements, representations, or course of dealing by any SST representatives shall vary, expand or modify these warranties.

To the maximum extent permitted by applicable law, all other representations or warranties, express, implied, or statutory, including without limitation, any warranties of non-infringement, quality, suitability, merchantability, fitness for a particular purpose or otherwise of any services or any goods provided incidental to the services provided under this agreement are hereby expressly disclaimed and superseded by the exclusive limited express warranty and disclaimers set forth herein.

Without limiting the generality of the foregoing limitations and disclaimers, while the System, Software and Service is not designed, sold, or intended to be used to detect, intercept, transmit or record oral or other communications of any kind, SST cannot control how the System, Software and Service is used, and, accordingly, SST does not warrant or represent, expressly or implicitly, that use of the System, Software and Service will comply

or conform to the requirements of federal, state or local statutes, ordinances and laws, or that use of the System, Software and Service will not violate the privacy rights of third parties. You shall be solely responsible for using the System, Software and Service in full compliance with applicable law and the rights of third persons.

Further, regardless of any prior statements, representations, or course of dealings by any SST representatives, we do not warrant or represent, expressly or implicitly, that the System, Software and Service or its use will: result in the prevention of crime or hostile enemy action, apprehension or conviction of any perpetrator of any crime, military prosecution of any enemy force, or detection or neutralization of any criminal, combatant or threat; prevent any loss, death, injury, or damage to property due to the discharge of a firearm or other weapon; in all cases result in a Reviewed Alert for all firearm discharges within the designated coverage area;; or that the SST-supplied network will remain in operation at all times or under all conditions.

SST expressly disclaims, and does not undertake or assume any duty, obligation or responsibility for any decisions, actions, reactions, responses, failure to act, or inaction, by Customer as a result of or in reliance on, in whole or in part, any Services or Reviewed Alerts provided by SST, or for any consequences or outcomes, including any death, injury, or loss or damage to any property, arising from or caused by any such decisions, actions, reactions, responses, failure to act, or inaction. It shall be the sole and exclusive responsibility of the Customer to determine appropriate decisions, actions, reactions or responses, including whether or not to dispatch emergency responder resources. The Customer hereby expressly assumes all risks and liability associated with any and all action, reaction, response, and dispatch decisions, and for all consequences and outcomes arising from or caused by any decisions made or not made by the Customer in reliance, in whole or in part, on any Services provided by SST, including any death, injury, or loss or damage to any property.

Any and all warranties, express or implied, of fitness for high risk purposes requiring fail-safe performance are hereby expressly disclaimed.

You and we each acknowledge and agree that the Service is not a consumer good, and is not intended for sale to or use by or for personal, family or household use.



ShotSpotter Agreement – FLEX™ Standard Terms, Conditions and Support (Domestic)

8. YOUR OBLIGATIONS. You acknowledge and agree that SST's duties, including warranty obligations, and ability to perform its obligations to you shall be predicated and conditioned upon your timely performance of and compliance with your obligations hereunder, including, but not limited to:

A. You agree to pay all sums due under the purchase agreement or order as and when they are due pursuant to the terms of such agreement or order. Actual access and use of the ShotSpotter Flex System in the field for purposes of detecting and locating gunshots shall constitute evidence that the Service is active and the final payment is due.

B. You agree to use your best efforts to timely perform and comply with all of your obligations allocated to you in the Purchase Documents and/or other contract documents, including, without limitation, provisions regarding assisting SST in obtaining sensor site permissions from premises owners or lessors, in locations reasonably acceptable to SST, which obligations are incorporated by reference and made a part hereof. Unless the Statement of Work or other contract documents signed by SST allocates such obligations to SST expressly, customer shall be responsible for securing from premises owners or lessors all rights necessary to enter onto their premises to install sensors, and to place, operate and maintain such sensors on such premises. SST's duties, including warranty obligations to you shall be predicated and conditioned upon your timely performance of and compliance with your obligations set forth herein, and in the Purchase Documents.

C. You shall not permit any alteration, modification, substitution or supplementation of the ShotSpotter Flex System, Software, or Flex System Component, or the combining, connection, merging, bundling, or integration of the ShotSpotter Flex System, Software or Flex System Component into or with any other system, equipment, hardware, software, technology, function or capability, without our prior written consent.

D. Unless otherwise expressly agreed in advance in writing by SST, you shall not resell, transfer, distribute or allow access to the Software, Data, Products or any portion thereof, or to any ShotSpotter Flex System output or direct data, to any person other than the specific end-user previously identified to SST in the Purchase Documents, and shall not authorize or appoint any contractors, subcontractors, original equipment manufacturers, value added integrators, systems integrators or other third parties to operate, have access to, possess, service, support, maintain, distribute or sublicense the Products. Unless otherwise expressly agreed in advance in writing SST, you shall not authorize, allow or permit access to any computer file server or other device on which is stored any ShotSpotter Flex System output or direct data, or to any Software, by any person other than the bona fide current employees of the specific end-customer identified to SST in the Purchase Documents actually having a need to access such data

and/or Software for the purpose of using the same for the purposes authorized by this Agreement.

E. You hereby grant to SST, and ShotSpotter hereby retains, a purchase money security interest in the Products until SST has received full payment for all the Products. Until payment is received by SST, the Products shall remain the personal property of SST, regardless of any interconnection with other equipment or property. You shall perform all acts and execute and deliver all financing statements or other documents or instruments that ST may reasonably request to perfect and retain such purchase money security interest.

F. Customer Must Have Internet Access. In order to use the Service, Customer must have or must obtain access to the World Wide Web to enable a secure https connection from the customers work station to SST's hosted services. , either directly or through devices that access Web-based content. Customer must also provide all equipment necessary to make such (and maintain such) connection.

G. Passwords and Access. Customer will be responsible for the confidentiality and use of Customer's password and user names, and agrees that sharing passwords and/or user names with unauthorized users is prohibited.

H. You shall comply with all applicable laws, rules and regulations relating to the goods and services provided hereunder.

9. INTELLECTUAL PROPERTY RIGHTS: LIMITED

LICENSE. We or our licensors retain all ownership of all intellectual property rights in and to all data, software, computer programs, related documentation, technology, knowhow and processes embodied in or made available to you in connection with the System, Service, and Software, including, without limitation, all patent rights, copyrights, trade secret rights, trademarks and service marks. Your rights to install and use the System, Data and Software are limited, and shall be strictly in accordance with the License set forth in Section 2 hereof. Any and all rights not granted expressly in such License are hereby reserved.

10. EXPORT CONTROL. You acknowledge that the ShotSpotter Flex System is the subject of a Commodity Jurisdiction determination by the United States Department of State, and has been determined to be a controlled commodity, software and/or technology subject to the United States Export Administration Regulations of the U.S. Department of Commerce. Accordingly, no part of the Data, Software, ShotSpotter Flex System or any GLS System component thereof may be transferred, consigned, shipped, delivered, received, exported or re-exported, nor may any technical data directly relating to any of the same or the underlying information or technology be disclosed, downloaded, uploaded, transmitted, received, furnished, or otherwise provided, to, by or through any person, government, country, or to any end-user, or for any end-uses, except in compliance with applicable U.S. export control laws administered by the U.S. Government, and any



other applicable U.S. laws, including the sanctions laws administered by the U.S. Department of Treasury, Office of Foreign Assets Control (OFAC), the U.S. Anti-Boycott regulations, and any applicable laws of your country. In this respect, no resale, transfer, or re-export of any ShotSpotter Flex System exported to you pursuant to a license from the U.S. Department of Commerce may be resold, transferred, or reported without prior authorization by the U.S. Government. Customer agrees not to export, re-export or engage in any “deemed export,” or to transfer or deliver, or to disclose or furnish, to any foreign (non-U.S.) government, foreign (non-U.S.) person or end-user, or to any U.S. person or entity, any of the ShotSpotter Flex System, GLS System components, Data, Software, Services, or any technical data or output data or direct data product thereof, or any service related thereto, in violation of any such restrictions, laws or regulations, or without all necessary registrations, licenses and or approvals. Unless otherwise agreed and so specified in the Purchase Documents, you shall obtain and bear all expenses relating to any necessary determinations, registrations, licenses and/or exemptions with respect to its exportation, re-exportation or “deemed export” of the ShotSpotter Flex System, Data, Software or any GLS System Components or Services, as well as with respect to the disclosure or furnishing of any technical data or other information and services relating to any of the same.

In addition to compliance with the foregoing, and without limiting the generality thereof, Customer shall not disclose, discuss, download, ship, transfer, deliver, furnish, or otherwise export or re-export any such item(s) to or through: (a) any person or entity on the U.S. Department of Commerce Bureau of Industry and Security’s List of Denied Persons or Bureau of Export Administration’s anti-proliferation Entity List; (b) any person on the U.S. Department of State’s List of Debarred Parties; (c) any person or entity on the U.S. Treasury Department Office of Foreign Asset Control’s List of Specially Designated Nationals and Blocked Persons; or (d) any other end-user or for any end-use prohibited by law or regulation, as any and all of the same may be amended from time to time, or any successor thereto.

11. PROTECTION OF CONFIDENTIAL INFORMATION. Unless either party (the “Receiving Party”) obtains prior written consent from the other (the “Disclosing Party”), the Receiving Party agrees that it will not reproduce, use for purposes other than those expressly permitted herein, disclose, sell, license, afford access to, distribute, or disseminate any information: i) obtained from the Disclosing Party in connection with the System purchase, installation or operation, and designated by it from time to time as confidential; ii) the documentation, use and operations manuals; and output data created or compiled by the ShotSpotter Flex System; iii) your use of the

ShotSpotter Flex System or technology, your deployment methodology, results, or related facts; iv) the contractual terms and payment terms applicable to the purchase of the ShotSpotter Flex System or technology, except as required by local law (collectively, “Confidential Information”) Unless a section of the Purchase Document(s) specifically identifies the identity of Customer as Confidential Information, the fact that Customer is a customer of SST shall not itself be considered Confidential Information, nor shall the name of any city in which the ShotSpotter GLS System is deployed be considered confidential information. Recipient’s obligations under this section shall not apply to any of Discloser’s Confidential Information that Recipient can document: (a) was in the public domain at or subsequent to the time such Confidential Information was communicated to Recipient by Discloser through no fault of Recipient; (b) was rightfully in Recipient’s possession free of any obligation of confidence at or subsequent to the time such Confidential Information was communicated to Recipient by such Discloser; (c) was developed by employees or agents of Recipient independently of and without reference to any of Discloser’s Confidential Information; or (d) was communicated by Discloser to an unaffiliated third party free of any obligation of confidence. A disclosure by Recipient of any of Discloser’s Confidential Information (a) in response to a valid order by a court or other governmental body; (b) as otherwise required by law; or (c) necessary to establish the rights of either party under this Agreement shall not be considered to be a breach of this Agreement by such Recipient; provided, however, such Recipient shall provide prompt prior written notice thereof to such Discloser to enable Discloser to seek a protective order or otherwise prevent such disclosure. Receiving Party shall use reasonable controls to protect the confidentiality of and restrict access to all such Confidential Information to those persons having a specific need to know the same for purposes expressly authorized herein, and render unreadable prior to discarding, all records containing our Confidential Information. In any event such controls shall not be less protective than those Receiving Party uses to secure and protect its own confidential, but not “Classified” or otherwise Government-legended, information

12. NOTICES. Any notice or other communication required or permitted to be given under this Agreement shall be in writing at such party’s address or number or at such party’s last known address or number. The party’s addresses may be changed by written notice to the other party as provided herein.

13. FORCE MAJEURE. In no event shall SST be liable for any delay or default in its performance of any obligation under this or any other agreement caused directly or indirectly by an act or omission of Customer, or persons acting under its direction and/or control, fire, flood, act of God, an act or omission of civil or military authority of a state or nation, strike, lockout or other labor disputes,



inability to secure, delay in securing, or shortage of labor, materials, supplies, transportation, or energy, failures, outages or denial of services of wireless, power, telecommunications, or computer networks, acts of terrorism, sabotage, vandalism, hacking, natural disaster or emergency, war, riot, embargo or civil disturbance, breakdown or destruction of plant or equipment, or arising from any cause whatsoever beyond SST's reasonable control. At SST's option and following notice to Customer, any of the foregoing causes shall be deemed to suspend such obligations of SST so long as any such cause shall prevent or delay performance, and SST agrees to make and Customer agrees to accept performance of such obligations whenever such cause has been remedied.

14. DEFAULT; REMEDIES. Upon the occurrence of any default by or breach of your obligations, we may at our option, effective immediately, either: (i) terminate our future obligations under this agreement, terminate your License to use the Service and Software, or (ii) accelerate and declare immediately due and payable all remaining charges for the remainder of the agreement and proceed in any lawful manner to obtain satisfaction of the same. In either case, you shall also be responsible for paying court costs and reasonable attorneys' fees incurred by or on behalf of us, as well as applicable repossession, shipping, repair and refurbishing costs.

15. LIMITATIONS ON LIABILITY. In no event shall either party, or any of its affiliates or any of its/their respective directors, officers, members, attorneys, employees, or agents, be liable to the other party under any legal or equitable theory or claim, for lost profits, lost revenues, lost business opportunities, exemplary, punitive, special, or consequential damages, each of which is hereby excluded by agreement of the parties, regardless of whether such damages were foreseeable or whether any party or any entity has been advised of the possibility of such damages.

In any event, except for its IP infringement indemnity obligations under section 6 hereof, SST's cumulative liability for all losses, claims, suits, controversies, breaches or damages for any cause whatsoever (including, but not limited to, those arising out of or related to this agreement) and regardless of the form of action or legal theory shall not exceed two times the amount paid to SST under this agreement, or the amount of insurance maintained by SST available to cover the loss, whichever is greater. The foregoing limitations shall apply without regard to any failure of essential purpose of any remedies given herein.

16. GENERAL PROVISIONS.

A. NO AGENCY. Neither SST nor any of its employees is an agent or representative of Customer and the Customer is solely responsible for obtaining any required authorizations from any governmental agency, body or commission and for compliance therewith.

B. TERMS. Unless otherwise mutually agreed and so specified in the Purchase Documents, terms of sale of all Products are FOB SST's facility in California, U.S.A. Subject to SST's retained purchase money security interest, title, and all risk of loss shall pass to you upon SST's delivery of such products to your carrier or forwarder at that location. You shall be responsible for paying all freight, shipping, storage and demurrage charges, insurance, and all duties, taxes and other charges.

C. COMPLIANCE WITH LAWS AND TAXES. You shall comply with all applicable laws, statutes and regulations relating to the sale, distribution, and use of the Service and the performance of your duties and obligations hereunder. All prices are exclusive of all tariffs, customs duties, imposts, national, federal, provincial, state, and local VAT, excise, sales, use and similar taxes. You will be pay and be responsible for paying any and all such taxes and tariffs, when applicable.

D. EQUAL OPPORTUNITY CONTRACT CLAUSE. SST is committed to the provisions outlined in the Equal Opportunity Clauses of Executive Order 11246, (41 CFR 60-1.4), section 503 of the Rehabilitation Act of 1973, (41 CFR 60-741.5(a)), section 402 of the Vietnam Era Veterans Readjustment Act of 1974, (41 CFR 60-250.5(a)), and, the Jobs for Veterans Act of 2003, (41 CFR 60-300.5(a)) as well as any other regulations pertaining to these orders.

E. SEVERABILITY AND INTERPRETATION. If any provision, in whole or in part, of this Agreement and/or the Purchase Documents of which it is a part is held invalid or unenforceable for any reason, the invalidity shall not affect the validity of the remaining provisions, and there shall be substituted for the invalid provision a valid provision which most closely approximates the intent and economic effect of the invalid provision. No part or provision shall be interpreted in favor or against any party because such party or its counsel drafted the relevant provision. No course of dealing, usage, custom of trade, or communication between the parties shall modify or alter any of the rights or obligations of the parties under this Agreement and Purchase Document(s).

F. INTEGRATION, AMENDMENT AND WAIVER. This Agreement, and the Purchase Document(s) of which it is a part, together with any other exhibits or appendices thereto, constitute the entire understanding between SST and you. No other documents or representations shall be used in interpreting it. Any and all written or oral agreements heretofore existing between the parties are expressly cancelled and/or superseded. Any other document, proposal, specification, statement of work,



ShotSpotter Agreement – FLEX™ Standard Terms, Conditions and Support (Domestic)

marketing collateral, or representation which may vary, alter, amend or supplement these terms and conditions will not be binding unless agreed to in a writing signed by appropriate representatives of both SST and Customer. No modification, variance, amendment or waiver of any part of Agreement or Purchase Document(s) shall be binding upon either party, whether written, oral, or in any other medium, unless made in writing and signed by authorized representatives of both parties. All the parties' rights and duties are material and time is of the essence; no waiver of any rights hereunder shall be deemed effective unless in writing executed by the waiving party; no waiver of either party's breach of any provision of this Agreement or Purchase Documents shall constitute a waiver of any prior or subsequent breach of the same or any other provision, and no failure to exercise, and no delay in exercising, any right(s) hereunder on either party's part shall operate as a waiver of any such right; all of the parties' rights are cumulative; and, no single or partial exercise of any right hereunder shall preclude further exercise of such right or any other right.

G. BENEFIT AND BURDEN; ASSIGNMENT. Subject to the following provisions, this Agreement and the Purchase Documents of which they are a part shall be binding upon permitted successors and assigns and shall inure to the benefit of the parties and their respective permitted successors and assigns only. **Notwithstanding that the Service and Software, and its output data may be used for law enforcement, military, public safety, and force protection purposes, there are no third party beneficiaries intended to benefit from these general terms and conditions of sale, or the agreement or order of which they are a part.** Customer may not assign or transfer this Agreement and the Purchase Documents of which they are a part, or any of the rights granted therein, in whole or in part, by operation of law or otherwise, without SST's express prior written

consent. SST may assign or transfer this Agreement and the Purchase Documents and/or SST's rights and obligations hereunder, in whole or in part, to any third party without the necessity of obtaining Customer's consent. No assignee for the benefit of Customer's creditors, custodian, receiver, trustee in bankruptcy, debtor in possession, sheriff or any other officer of a court, or other person charged with taking custody of Customer's assets or business, shall have any right to continue or to assume or to assign these without SST's express consent.

H. GOVERNING LAW AND DISPUTE RESOLUTION. The validity, performance, and construction of this agreement shall be governed by the laws of the laws of the State of Florida, with venue lying in Miami-Dade County. The United Nations Convention on Contracts for the International Sale of Goods is expressly disclaimed and shall not apply. If the parties disagree as to any matter arising under this Agreement or the relationship and dealings of the parties hereto, then SST and Customer shall promptly consult with one another and make diligent, good faith efforts to resolve the disagreement, by negotiation. Should the dispute not be resolved within a reasonable time after commencement of such negotiations, it shall be mediated before one or more mediators mutually acceptable to both parties. Costs of mediation will be allocated as part of the resolution in mediation, but absent such resolution, shall be paid equally by the parties. In addition to any other remedies to which it may be entitled, the prevailing party shall be entitled to recover its reasonable attorneys' fees and costs (including expert witness fees and costs) incurred in connection with enforcing its rights or defending itself.

All parties hereby irrevocably waive any and all rights they may have to a trial by jury in any judicial proceeding involving any claim relating to or arising under this agreement or any other agreement between the parties hereto.

IN WITNESS THEREOF, the parties have caused this Agreement to be executed by their duly authorized representatives on the date(s) shown below.
SHOTSPOTTER, INC.

CITY OF MIAMI GARDENS, FL

By: _____
(Authorized Signature)

By: _____
(Authorized signature)

Name: _____

Name: _____

Title: _____

Title: _____

Date: _____

Date: _____



EXHIBIT A - Reviewed Alert Service Levels

The ShotSpotter Flex System detects loud impulsive incidents, classifies them as gunfire, fireworks, or other, and sends them to the SST Incident Review Center. Within 15 seconds of receiving the incident audit download, SST review personnel will begin analysis of the incident, which will include observing sensor audio wave files and listening to sensor audio. The outcome of this review is intended to confirm or change the System's classification of the incident type, and, depending on the reviewer's confidence level that the incident is or may be gunfire, will result in an alert ("Reviewed Alert") sent to the Customer's **Alert Console**, based on the following criteria:

<u>Incident Type</u>	<u>Action</u>
High confidence incident is gunfire	Reviewed Alert sent to Customer Alert Console
Uncertain if incident is gunfire or not	Reviewed Alert sent to Customer Alert Console
Low confidence incident is gunfire	No alert will be sent; incident available for customer review in the incident history available through the Customer Alert Console

Reviewed Alerts are sent to the Customer Alert Console. Information in a Reviewed Alert will include the location of the incident, the reviewer's qualitative assessment of the confidence level that the incident is or may be gunfire, along with other pertinent information and data.

Specifically, information provided in a Reviewed Alert will include:

- "Dot on the map" and closest parcel address denoting the location of the incident
- Qualitative Confidence that the incident is gunfire: High or Uncertain
- Qualitative Severity: Single shot, multiple shots, drive by shooting, full automatic
- Comments (if any)

The majority of incidents will be processed within 45 seconds of the System notifying the SST Incident Review Center of an incident and 90% of the incidents will be processed in less than 60 seconds. In the unlikely event that the review center loses connection to the hosting facility or the review center is unable to process the incident within approximately 60 seconds for some reason, the system will automatically route unreviewed incidents directly to the customer based on the systems classification of the incident. In the event the reviewed incident data reveals information that will aid in responder situational awareness, SST may (but is not obligated to) include this information as Comments in the Reviewed Alert. In complex incidents SST may (but is not obligated to) send an informational update shortly after the initial Reviewed Alert to the Customer's Alert Console to provide additional situational awareness information.

During major holidays such as in the case of New Years Eve, Independence Day, and Cinco de Mayo, most communities experience a large increase in firework activity. During these periods, usually at least 48 hours in advance of the holiday, during the holiday and 48 hours following the holiday, SST will put the system into fireworks suppression mode so that the reviewers can focus their response to incidents classified as gunfire. SST will inform the customer prior to the system being placed in fireworks suppression mode and when fireworks suppression mode is disabled. The actual timing of fireworks suppression mode being active is determined by the review center based on the level of fireworks being discharged. While in fireworks suppression mode, fireworks incident alerts are not sent to the reviewer nor the customer alert console, however all firework incidents continue to be stored in the data base should any of this information be needed at a later time.



ShotSpotter Agreement – **Standard Terms, Conditions and Support (Domestic)**

The purpose of the Reviewed Alert Service is to provide incident data to the Customer, reviewed, analyzed and classified in the manner described above, in situations where the analyst's qualitative confidence that an incident is or may be gunfire meets the criteria set forth above. However, it is the sole responsibility of the Customer to interpret the data provided, and to determine any appropriate follow-up reaction or response, including whether or not to dispatch emergency responder resources based on a Reviewed Alert. SST does not undertake any obligation, duty or responsibility for reaction, response, or dispatch decisions, which are solely and exclusively the responsibility of Customer, or for the consequences or outcomes of any decisions made or not made by the Customer in reliance, in whole or in part, on any services provided by SST.

The Alert Console provides the Customer with full and immediate access to all incident history including the same information SST uses in its internal review process. This information includes, among other things, the initial incident classification and any reclassifications of an incident, incident audio wave forms, and incident audio files. This enables the Customer to perform its own incident reviews, change classification based on evidence found at the location, and run various reports. This data access is available as long as the Customer is under active subscription.



EXHIBIT B - System Configuration and Service Levels

SST will deploy a ShotSpotter Flex system over the agreed upon coverage area. The system will be designed to detect at least 80% of the unsuppressed outdoor gunfire, with a location accuracy to the shooter's location within 25 meters in at least 80% of the incidents. These performance levels are predicated on the Customer assisting SST in acquiring permission for SST personnel to install and maintain the sensors at SST-recommended sites. In the event that SST cannot deploy sensors at all such sites, the foregoing performance levels may be compromised.

The sensors send incident information to a server in a SST hosting facility via third party cellular, wireless or wired networks. SST is not responsible for outages on the third party networks. SST will be responsible for installation and maintenance of the sensors and cost of the sensor communications to the hosted location server. The hosted server infrastructure (exclusive of communications networks) shall be maintained at 99.9% application availability exclusive of scheduled maintenance that SST will make reasonable efforts to coordinate with the customer.

The connection between the reviewer's console and the Customer's Alert Console is secured using a secure message protocol over http connection, where individual messages are encrypted using the same Public Key Infrastructure ("PKI") as a secure VPN connection.

Providing local access to the internet for the Alert Console is the responsibility of the Customer, as is providing a work station with access to the internet. The Customer may choose to set up multiple sessions of Alert Consoles as a form of redundancy.

RESOLUTION NO. 2015-198-2895

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF MIAMI GARDENS, FLORIDA, AUTHORIZING THE CITY MANAGER AND THE CITY CLERK, TO EXECUTE AND ATTEST RESPECTIVELY, THAT CERTAIN AGREEMENT WITH SST, INC. FOR THE PURCHASE OF GUNFIRE LOCATION, ALERT AND ANALYSIS SYSTEM FOR THE EXISTING 4.5 SQUARE MILE COVERAGE AREA IN THE CITY, IN THE AMOUNT OF FIVE HUNDRED FORTY THOUSAND DOLLARS (\$540,000.00), A COPY OF WHICH IS ATTACHED HERETO AS EXHIBIT "A"; AUTHORIZING THE PURCHASE OF ADDITIONAL COVERAGE AREAS WITHIN THE CITY MANAGER'S PURCHASING AUTHORITY; PROVIDING FOR INSTRUCTIONS TO THE CITY CLERK; PROVIDING FOR THE ADOPTION OF REPRESENTATIONS; PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, on May 9, 2012, the City Council adopted Resolution No. 2012-73-1668, which authorized the City Manager to execute an Agreement with ShotSpotter, Inc., for gunshot detection and location services, and

WHEREAS, the use of gunshot detection and location services has reduced the Police Department's response time to gunfire incidents, and

WHEREAS, the technology has also assisted the Police Department with the recovery of firearms and other forensic evidence, and

WHEREAS, since 2012, the City has leased the gunshot detection and location services for a 4.5 square mile coverage area from SST, Inc., and

WHEREAS, City staff is recommending that the City Council authorizes the City Manager enter into an Agreement to purchase the equipment for the existing 4.5 square mile coverage area, and

WHEREAS, the total cost for the purchase of the equipment for the existing coverage area will not exceed Five Hundred Forty Thousand Dollars (\$540,000.00), and

WHEREAS, City staff further recommends that the City Council authorize the purchase of additional coverage areas within the City Manager's purchasing authority,

NOW, THEREFORE, BE IT RESOLVED BY THE CITY COUNCIL OF THE CITY OF MIAMI GARDENS, FLORIDA AS FOLLOWS:

Section 1: ADOPTION OF REPRESENTATIONS: The foregoing Whereas paragraphs are hereby ratified and confirmed as being true, and the same are hereby made a specific part of this Resolution.

Section 2: AUTHORIZATION: The City Council of the City of Miami Gardens hereby authorizes the City Manager and the City Clerk, to execute and attest respectively, that certain agreement with SST, Inc., for the purchase of gunfire location, alert and analysis system for the existing 4.5 square mile coverage area in the City, in the amount of Five Hundred Forty Thousand Dollars (\$540,000.00), a copy of which is attached hereto as Exhibit "A"; and further authorizes the purchase of additional coverage areas within the City Manager's purchasing authority.

Section 3: INSTRUCTIONS TO THE CITY CLERK: The City Clerk is hereby authorized to obtain two (2) fully executed copies of the subject Agreement with one to be maintained by the City, and one to be delivered to SST, Inc.

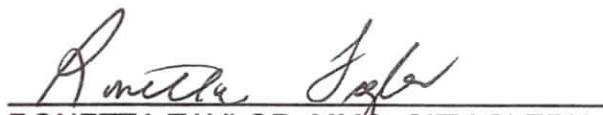
Section 4: EFFECTIVE DATE: This Resolution shall take effect immediately upon its final passage.

PASSED AND ADOPTED BY THE CITY COUNCIL OF THE CITY OF MIAMI GARDENS AT ITS REGULAR MEETING HELD ON DECEMBER 9, 2015.



OLIVER GILBERT, III, MAYOR

ATTEST:


RONETTA TAYLOR, MMC, CITY CLERK

PREPARED BY: SONJA KNIGHTON DICKENS, CITY ATTORNEY

SPONSORED BY: CAMERON D. BENSON, CITY MANAGER

Moved by: Councilman Williams

Seconded by: Councilwoman Davis

VOTE: 7-0

Mayor Oliver Gilbert, III	☒ (Yes)	☐ (No)
Vice Mayor Felicia Robinson	☒ (Yes)	☐ (No)
Councilwoman Lillie Q. Odom	☒ (Yes)	☐ (No)
Councilman David Williams Jr	☒ (Yes)	☐ (No)
Councilwoman Lisa C. Davis	☒ (Yes)	☐ (No)
Councilman Rodney Harris	☒ (Yes)	☐ (No)
Councilman Erhabor Ighodaro, Ph.D.	☒ (Yes)	☐ (No)



18605 NW 27th Avenue
Miami Gardens, Florida 33056

City of Miami Gardens Agenda Cover Memo

Council Meeting Date:	<i>December 9, 2015</i>		Item Type:	Resolution	Ordinance	Other		
			(Enter X in box)	X				
Fiscal Impact:	Yes	No	Ordinance Reading:		1st Reading		2nd Reading	
(Enter X in box)	X		(Enter X in box)					
			Public Hearing:		Yes	No	Yes	No
			(Enter X in box)			X		
Funding Source:	General Obligation Bond		Advertising Requirement:		Yes		No	
			(Enter X in box)				X	
Contract/P.O. Required:	Yes	No	RFP/RFQ/Bid #:					
(Enter X in box)	X							
Strategic Plan Related	Yes	No	Strategic Plan Priority Area:		Strategic Plan Obj./Strategy:			
(Enter X in box)	X		Enhance Organizational ☐ Bus. & Economic Dev ☐ Public Safety ☒ Quality of Education ☐ Qual. of Life & City Image ☐ Communication ☐					
Sponsor Name	Cameron Benson, City Manager		Department:		<i>Police Department</i>			

Short Title:

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF MIAMI GARDENS, FLORIDA, AUTHORIZING THE CITY MANAGER AND THE CITY CLERK, TO EXECUTE AND ATTEST RESPECTIVELY, THAT CERTAIN AGREEMENT WITH SST, INC. FOR THE PURCHASE OF GUNFIRE LOCATION, ALERT AND ANALYSIS SYSTEM FOR THE EXISTING 4.5 SQUARE MILE COVERAGE AREA IN THE CITY, IN THE AMOUNT OF FIVE HUNDRED FORTY THOUSAND DOLLARS (\$540,000.00), A COPY OF WHICH IS ATTACHED HERETO AS EXHIBIT "A"; AUTHORIZING THE PURCHASE OF ADDITIONAL COVERAGE AREAS WITHIN THE CITY MANAGER'S PURCHASING AUTHORITY; PROVIDING FOR INSTRUCTIONS TO THE CITY CLERK; PROVIDING FOR THE ADOPTION OF REPRESENTATIONS; PROVIDING FOR AN EFFECTIVE DATE.

Staff Summary:

Background

The City of Miami Gardens has been a leader in innovative crime fighting methods and technology, as a way of helping to "*Build a Safer Community*", and addressing issues of gun violence within our City. This was evident with the City's December 15, 2012, deployment of the ShotSpotter gunshot recognition system on a subscription basis and the ongoing Public Safety Technology Project. This ShotSpotter deployment, which is the largest in the State of Florida, is a key component of the City's multifaceted effort to utilize technology, personnel deployment, and analysis to facilitate an effective gun violence reduction program.

Information acquired through the use of the ShotSpotter solution has been essential in determining the extent of a gun violence problem within the 4.5-mile coverage area. The ShotSpotter solution has proved itself an invaluable and surprisingly accurate component of the Department's gun violence reduction program and assisted in a 74% reduction of gunfire alerts in the coverage area from the time of the solution's implementation.

Additionally, the ShotSpotter data, and proactive action on the part of MGLPD personnel, has resulted in a 69% reduction of celebratory New Years' Eve gunfire in the coverage area after year one (2013/2014), and a further 34% reduction during year two (2014/2015).

In accordance with State Statute and City Procurement policies, City Staff prepared specifications for a Sole/Single Source Solicitation which was broadcasted on April 16, 2012. A broadcast notice was sent to 602 suppliers. Six vendors requested the bid package. The opening date was April 30, 2012. No bids were received, concurring that ShotSpotter LLC is a sole source vendor for this commodity.

Proposed Action:

That the City Council approves the attached resolution authorizing the City Manager to enter into an agreement to purchase the existing 4.5 square mile coverage area of the ShotSpotter gunfire location, alert and analysis system from SST, Incorporated, with an option to expand the coverage area at the agreed upon price.

Fiscal Impact

The purchase will be made using proceeds from the General Obligation Bond.

Attachment:

Attachment A: ShotSpotter Gunfire Location, Alert and Analysis System Purchase Agreement

RESOLUTION NO. 2012-73-1668

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF MIAMI GARDENS, FLORIDA, AUTHORIZING THE CITY MANAGER AND THE CITY CLERK, TO EXECUTE AND ATTEST RESPECTIVELY, THAT CERTAIN AGREEMENT WITH SHOTSPOTTER, INC., FOR THE PURCHASE OF GUNSHOT DETECTION AND LOCATION SERVICE SENSORS, IN AN AMOUNT NOT TO EXCEED TWO HUNDRED SEVENTY THOUSAND DOLLARS (\$270,000.00), A COPY OF WHICH IS ATTACHED HERETO AS EXHIBIT "A"; PROVIDING FOR INSTRUCTIONS TO THE CITY CLERK; PROVIDING FOR THE ADOPTION OF REPRESENTATIONS; PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the Miami Gardens Police Department desires to purchase gunshot detection and location service sensors to detect the discharge of firearms in targeted areas throughout the City, and

WHEREAS, Shotspotter, Inc. is the sole source provider of gunshot detection sensors, and

WHEREAS, in accordance with Section 2-757(b)(1) of the City's Code of Ordinances, the bidding requirements are waived, and

WHEREAS, funding in the amount of Two Hundred Forty-Three Thousand Dollars (\$243,000.00) will be provided through the 2009 Urban Area Security Initiative ("UASI"), as well as private donation in the amount of Twenty-Five Thousand Dollars (\$25,000.00) from Arnold Porath, through the National Homes Trust XIII, and

WHEREAS, Two Thousand Dollars (\$2,000.00) will be utilized from the General Fund for the remaining balance,

NOW, THEREFORE, BE IT RESOLVED BY THE CITY COUNCIL OF THE CITY OF MIAMI GARDENS, FLORIDA AS FOLLOWS:

Section 1: ADOPTION OF REPRESENTATIONS: The foregoing Whereas paragraphs are hereby ratified and confirmed as being true, and the same are hereby made a specific part of this Resolution.

Section 2: AUTHORIZATION: The City Council of the City of Miami Gardens hereby authorizes the City Manager to execute and attest respectively, that certain Agreement with Shotspotter, Inc., for the purchase of, gunshot detection and location service sensors in an amount not to exceed Two Hundred Seventy Thousand Dollars (\$270,000.00), a copy of which is attached hereto as Exhibit "A".

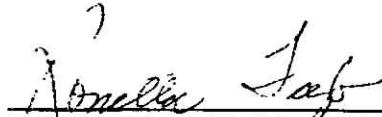
Section 3: INSTRUCTIONS TO THE CITY CLERK: The City Clerk is hereby authorized to obtain two (2) fully executed copies of the subject Agreement with one to be maintained by the City, and one to be delivered to Shotspotter, Inc.

Section 4: EFFECTIVE DATE: This Resolution shall take effect immediately upon its final passage.

PASSED AND ADOPTED BY THE CITY COUNCIL OF THE CITY OF MIAMI GARDENS AT ITS REGULAR MEETING HELD ON MAY 9, 2012.


SHIRLEY GIBSON, MAYOR

ATTEST:


RONETTA TAYLOR, MMC, CITY CLERK

PREPARED BY: SONJA KNIGHTON DICKENS, ESQ., CITY ATTORNEY

Resolution No. 2012-73-1668

SPONSORED BY: DR. DANNY O. CREW, CITY MANAGER

Moved by: Vice Mayor Gilbert

Second by: Councilman David Williams Jr.

VOTE: 6-0

Mayor Shirley Gibson	<u>X</u> (Yes)	_____ (No)
Vice Mayor Oliver Gilbert, III	<u>X</u> (Yes)	_____ (No)
Councilman Aaron Campbell, Jr.	<u>X</u> (Yes)	_____ (No)
Councilman David Williams Jr	<u>X</u> (Yes)	_____ (No)
Councilwoman Lisa Davis	<u>X</u> (Yes)	_____ (No)
Councilwoman Felicia Robinson	<u>X</u> (Yes)	_____ (No)
Councilman Andre' Williams	_____ (Yes)	_____ (No) (not present)



1515 NW 167 Street, Building 5 Suite 200
Miami Gardens, Florida 33169

City of Miami Gardens Agenda Cover Memo

Council Meeting Date:	May 9, 2012		Item Type:	Resolution	Ordinance	Other		
			(Enter X in box)	X				
Fiscal Impact: (Enter X in box)	Yes	No	Ordinance Reading: (Enter X in box)		1st Reading		2nd Reading	
	X		Public Hearing: (Enter X in box)		Yes	No	Yes	No
						X		
Funding Source:	UASI Grant/General Fund/Donation		Advertising Requirement: (Enter X in box)		Yes		No	
							X	
Contract/P.O. Required: (Enter X in box)	Yes	No	RFP/RFQ/Bid #:		Sole Source			
	X							
Strategic Plan Related (Enter X in box)	Yes	No	Strategic Plan Priority Area:		Strategic Plan Obj./Strategy: (list the specific objective/strategy this item will address)			
		X	Enhance Organizational ☐ Bus. & Economic Dev ☐ Public Safety ☐ Quality of Education ☐ Qual. of Life & City Image ☐ Communication ☐					
Sponsor Name	Dr. Danny Crew, City Manager		Department:		Police Department			

Short Title:

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF MIAMI GARDENS, FLORIDA, AUTHORIZING THE CITY MANAGER AND THE CITY CLERK, TO EXECUTE AND ATTEST RESPECTIVELY, THAT CERTAIN AGREEMENT WITH SHOTSPOTTER, INC., FOR THE PURCHASE OF GUNSHOT DETECTION AND LOCATION SERVICE SENSORS, IN AN AMOUNT NOT TO EXCEED TWO HUNDRED SEVENTY THOUSAND DOLLARS (\$270,000.00), A COPY OF WHICH IS ATTACHED HERETO AS EXHIBIT "A"; PROVIDING FOR INSTRUCTIONS TO THE CITY CLERK; PROVIDING FOR THE ADOPTION OF REPRESENTATIONS; PROVIDING FOR AN EFFECTIVE DATE.

Staff Summary:

The Miami Gardens Police Department continues to be responsive and innovative in the manner and methods used to prevent and reduce crime. Since the Department's inception in 2007, targeted felony

**ITEM K-3) CONSENT AGENDA
RESOLUTION
Agreement w/ Shotspotter Inc.**

crimes have been reduced by over 30% and there has been a noticeable increase in citizen participation in reporting criminal activity. In an effort to continue the Department's use of technology in this effort, staff is seeking to deploy acoustic gun shot sensors throughout specific portions of the City. This system will assist in the detection, identification, and ultimate deterrence of gun violence by accelerating police response time, which increase the chances of apprehending perpetrators illegally discharging firearms and committing gun violence.

Shot Spotter LLC has been contacted and is a sole source provider of this technology. The proposed system will cover 4.5 square miles of the City which accounts for 34.3 percent of the shots fired calls and 38.1 percent of the crimes in which firearms were used. Since 2010, there have been over 1,700 reported shots fired calls and staff has conducted an analysis to determine the most effective area to deploy the sensors. Once operational, the sensors will detect the discharge of firearms within the targeted area and officers will be dispatched immediately to the area via their Mobile Computer Terminals.

Funding for the system will be provided through the 2009 Urban Area Security Initiative (UASI), in addition the City has received a private donation for \$25,000 provided by Arnold Porath, the National Homes Trust XIII, a not for profit Washington D.C. Corporation. Sustainment for the system will be allocated in in subsequent years from the General Fund, Byrne-Grant allocation, and public / private partnerships developed by Police Department Staff.

UASI 2009 Grant:	\$243,000
Private Donation:	\$ 25,000
<u>General Fund</u>	<u>\$ 2,000</u>
Total:	\$270,000

In accordance with State Statue and the Procurement Division's policies City Staff prepared specifications for a Sole/Single Source Solicitation and was broadcast on April 16, 2012. A broadcast notice was sent to 602 suppliers. Six vendors requested the bid package. The opening date was April 30, 2012. No bids were received, concurring that Shot Spotter, LLC is a sole source vendor for this commodity.

Proposed Action:

That the City Council approve the attached resolution authorizing the City Manager to execute the attached contract with Shot Spotter, LLC in an amount not to exceed \$270,000.

Attachment:

Attachment A: Shot Spotter Contract



May 5, 2012

Captain Alfred Lewers Jr.
Investigations Division / Special Operations
Miami Gardens Police Department
1020 NW 163rd Drive
Miami Gardens, FL 33169

RE: Proposal ID# MIAGRDNFLF04232012

Dear Captain Lewers,

Thank you for the opportunity to provide you with this Firm Fixed Price proposal for the ShotSpotter Flex™ Gunshot Detection and Location Service.

The pricing provided is a **firm fixed price** quote and remains valid until **May 14, 2012**. If an order is received by this date, SST will **waive the training fee of \$10,000**. Orders received after **May 14, 2012** will **not** receive the \$10,000 discount.

The term for this subscription will begin upon completion of the setup of the ShotSpotter Flex project and "live" status. The term will continue until **October 1, 2013**, at which time the Annual Subscription Fee will be due to continue another year of service.

We stand ready to cooperatively work with you in an ongoing effort to address gunfire and related violent crime in your community.

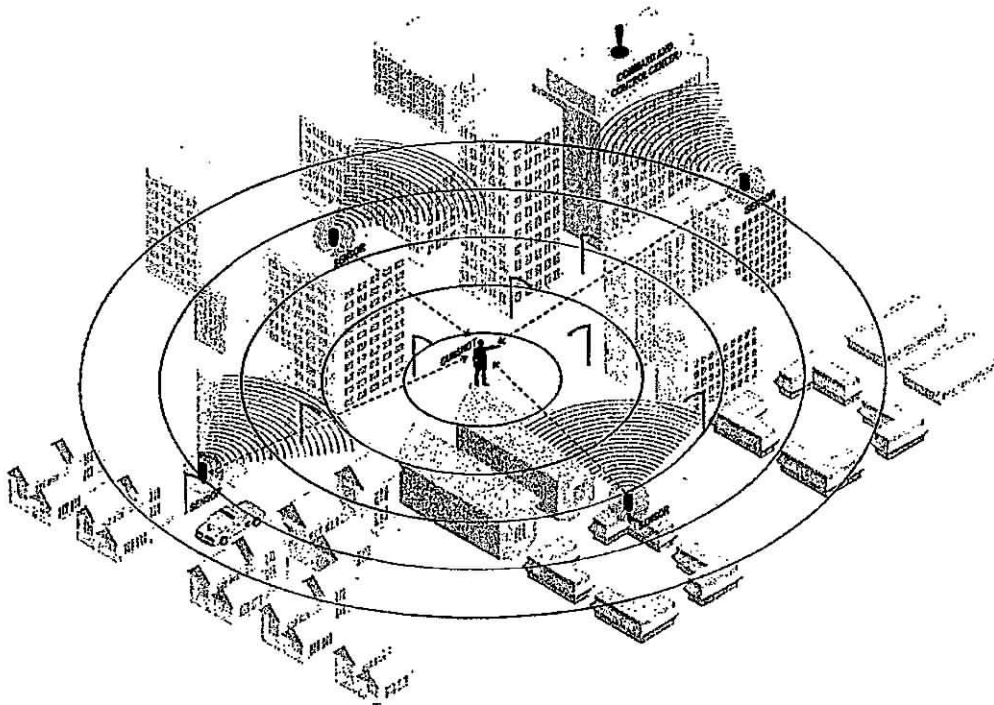
Sincerely,

A handwritten signature in black ink, appearing to read 'PD BY GR', is written over a faint, larger signature that is partially obscured.

Phil Dailly
Director, Southeast Region
C: 704-470-5501
phild@sst-inc.com

**Firm Fixed Price Proposal for a Subscription-Based
ShotSpotter Flex™ Gunshot Detection and Location Service
for 4.5 square miles for a term ending October 1, 2013**

**Proposal ID: MIAGRDNFLF04232012
Prepared on April 23, 2012
for: Miami Gardens Police Department**



Submitted by:

Phil Dailly – Director, Southeast Region

mobile: +1.704.470.5501
fax: +1.650.887.2106
phild@sst-inc.com

Corporate Headquarters
1060 Terra Bella Avenue
Mountain View, CA 94043
www.sst-inc.com

Scope of Services

The purpose of this proposal is to provide pricing and corresponding terms and conditions for the procurement of the ShotSpotter Flex™ subscription offering including:

- Qualified reviewed alerts for gunfire
- Incident types (e.g., fireworks) that do not explicitly generate alerts will be logged and retained in the system's database, and as such will be available for reporting, analysis, and mining. In addition, the basic reports provided with the system will summarize gunfire and fireworks activity, even if (as an example) receipt of fireworks is disabled.
- Coverage area; footprint determined by customer requirement
- Sensor type(s) determined by SST or certified installer.
- SST hosted, secured, monitored and maintained infrastructure (server farm, storage, sensor networks)
- Allocation of Alert Console licenses among different roles (call-taker, dispatcher, or mobile) is configurable at the discretion of the customer.
- Accessible and searchable alert history for two (2) years (additional years for a fee)
- One (1) kickoff and program coordination session
- Customer Experience Program that consists of: best practices, recommended TTPs, end-user documentation, and online end-user training
- High-level summary report and basic incident reports
- Reasonable support with Detailed Forensic Reports
- Standard customer support

It is the Customer's responsibility to assist SST with acquiring permissions and access on SST approved sites for installation and ShotSpotter's ongoing maintenance. Where possible, the system's acoustic sensors will be mounted on rooftops away from traffic. Where approved buildings are not available, or not an option, lamp poles or other suitable mounting locations will be considered provided they meet SST standards. All sites require 24hour by 365 day 100 to 240VAC, 50/60Hz power sources. Non-standard equipment required for system installation may require an additional fee and if so will be quoted accordingly. Should mounting locations be unavailable or should there be no sensor communications available at a site, SST will work with the customer to adjust the coverage area accordingly.

SST will be responsible for following all local, state and federal regulations, codes, rules and laws as it relates to the installation of the ShotSpotter Flex™ service.

Pricing, Terms, Conditions

The pricing provided is a firm fixed price quote and remains valid until **May 14, 2012**.

The term for this subscription will begin upon completion of the setup of the ShotSpotter Flex project and "live" status. The term will continue until **October 1, 2013**, at which time the Annual Subscription Fee will be due to continue another year of service.

The price as listed herein does not include any state or local sales taxes. Customer is responsible for notifying SST if the price needs to be adjusted for sales taxes.

One-Time Service Startup Fees:

Service initiation and startup fee for 4.5 square miles (@\$10,000/sq mi)	\$ 45,000
Heavy-duty wind-resistant sensor mounts (one-time charge @\$10,000/sq mi)	\$ 45,000
Training – Strategic Program and Tactical Use (one-time charge)	\$ 10,000
TOTAL ONE-TIME FEES	\$ 100,000

Annual Subscription Fee:

4.5 square miles of coverage area (@\$ 40,000/square mile)	\$ 180,000
TOTAL ANNUAL FEE	\$ 180,000

Total

One-Time Service Startup Fees	\$ 100,000
1-year subscription for 4.5 square miles	\$ 180,000
Discount for order received on or before May 14, 2012 (waive training fee)	-\$ 10,000
GRAND TOTAL	\$ 270,000

Payment Terms

Payment for the service initiation and startup, all subscription fees, and any and all optional service fees shall be as follows:

- 50% due upon submission of ShotSpotter Flex™ project plan from SST to Customer
- 50% due upon completion of ShotSpotter Flex™ project and "live" status

Insurance

SST, Inc. carries general liability insurance in an amount not less than \$1,000,000.00 for each occurrence.

Accompanying Exhibit

An exhibit specifying the item listed below is incorporated herein by reference and constitutes an integral part of this proposal. Unless specifically so-stated above, should there be any question of precedence between the exhibit and this proposal, then the exhibit, a single consolidated document shall be superior to the proposal itself. Items addressed within the consolidated document are:

- SST Service and License Agreement

IN WITNESS THEREOF, the parties have caused this Agreement to be executed by their duly authorized representatives on the date(s) shown below.

SHOTSPOTTER, INC.

By: _____

(Authorized Signature)

Name: _____

Title: _____

Date: _____

CITY OF MIAMI GARDENS, FL

By: _____

(Authorized signature)

Name: _____

Title: _____

Date: _____

Attest:

Rohetta, Taylor, MMC, City Clerk



ShotSpotter Service and License Agreement – Standard Terms, Conditions and Support (Domestic)

SST, Inc. (also “ShotSpotter,” “we,” “us,” or “our”) and the end-user customer (also “Customer,” “you” or “your”) agree to the following Services and License Agreement and General Terms and Conditions (hereinafter, “Agreement”).

The following Agreement is an essential part of the “Purchase Documents” (which term shall include this Agreement and all executed proposals and purchase orders, together with all attachments and appendices) under which you purchase ShotSpotter Gunshot Location services identified in the Purchase Documents and described herein (“Service”). Your access, or use of any part of the Service (and/or signature on the purchase order and/or agreement) shall constitute your representation that you have read all the terms and conditions of this Agreement, and your acceptance of them as an integral part of the Agreement and your purchase or order of the Service. If you do not agree to be bound by these terms and conditions, do not access or use any part of the Service.

1. SERVICES. In consideration of the parties’ mutual undertakings set forth in the Purchase Documents and in this Agreement, you and we agree as follows:

For purposes of this Agreement, the Service shall consist of (i) providing access by the Customer to Reviewed Alerts delivered via a password-protected internet portal (“Alert Console”) and user interface supplied by SST (together the Alert Console and interface shall be called the “Software”) (ii) providing access to historical Reviewed Alerts and incident information via the Software; and (iii) other services as specified in the Purchase Documents.

Reviewed Alerts consist of data for gunfire incidents, detected by the ShotSpotter Gunshot Location System and reviewed by a SST incident reviewer employee (see Exhibit A).

SST will install the ShotSpotter Gunshot Location System in the coverage area specified in the Purchase Document. SST will host the Service and may update the functionality and Software of the Service from time to time in its sole discretion and in accordance with this Agreement.

SST shall retain ownership of, and all rights to, all components of the ShotSpotter Gunshot Location System, including hardware components, Software and firmware. Under this Agreement the Customer is only licensing rights to access the incident information detected by the ShotSpotter Gunshot Location System.

2. LICENSE. The following sets forth the terms and conditions of your non-exclusive, non-transferable and terminable license to use the Service, Software and Data (as those terms are defined herein).

This License creates important legal rights and obligations, so please read it carefully before using the Service. This License constitutes an offer by us to you. **By manifesting electronically your assent to these terms, using the service, or by issuing a purchase order or signing a purchase agreement, you agree to be bound by the terms and conditions of this license.** If you do not agree to be bound by the terms of this License, do not issue or execute a Purchase Document, or use the Service.

A. RIGHTS IN DATA. All data, information, and electronic files created, generated, modified, compiled, displayed, stored or

kept in the course of providing the Service, including, without limitation, information in Reviewed Alerts accessible through the Software, and other data or information accessible, generated, compiled or displayed through the Software or System (“Data”) remains the sole and exclusive property of SST, regardless of where or on whose device(s) any such Data may be stored or kept.

SST grants to the Customer the rights to make copies of, distribute and use Reviewed Alerts within its own organization, exclusively for its own internal purposes, for purposes of detecting and locating gunfire, routine archival recordkeeping, evidence preservation, and evidentiary purposes.

If the customer purchases the exclusivity option, then SST will not distribute to any third party any Data related to or generated by ShotSpotter Gunshot Location System in Customer’s coverage area, unless in response to a valid order or subpoena issued by a court or other governmental body, or as otherwise required by law.

SST expressly reserves the rights to copy, publish, display, adapt, modify, translate, perform publicly, make works derived from, transfer, sell, offer for sale, and to use any and all Data (including, without limitation, Reviewed Alerts) for any purpose, and to authorize, license, and sublicense others to do any or all of the same. Notwithstanding the foregoing sentence and although ShotSpotter owns the Data with respect to the Licensed Product, ShotSpotter will provide reasonable notice if any data to be released is specific forensic or law enforcement sensitive incident information that may pertain to any active investigation or prosecution. At no time, either in a non-exclusive or exclusive data ownership, will ShotSpotter release, sell, license, or otherwise distribute the gunfire alert Data to the press without the prior express consent of the Customer. The parties shall comply with Chapter 119, Florida Statutes, Florida Public Records Laws.

B. RESTRICTIONS. The Software and Data are our proprietary products, may incorporate components supplied to us under license by third-party suppliers, and may be protected by United States patent, trade secret, copyright law and international treaty provisions. All such rights in and to Software and Data and any part thereof are the property of us or our suppliers. By virtue of this License, you acquire only the right to use the Software and Data in accordance with this Agreement, but otherwise acquire no license, title or ownership rights, express or implied, in or to the Software or Data, or any right to use or practice any of our patents, copyrights, trademarks, or trade secrets, all of which rights are reserved expressly by us or our suppliers. You may not make any copies of the written materials or documentation that accompanied any component of the Software, or use them, or any other information concerning the Service that we have designated as confidential, for any purpose other than bona fide use of the Service or Software for the specific purposes contemplated herein, nor allow anyone else to do so.

You shall not, without our express written consent, which may be withheld or conditioned in our sole discretion: (i) modify, adapt, alter, translate, copy, perform or display (publicly or otherwise) or create compilations, derivative, new or other works based, in whole or in part, on the Software or Data, or on the Service; (ii) merge, combine, integrate or bundle the Software or the Data, in whole or



ShotSpotter Service and License Agreement – Standard Terms, Conditions and Support (Domestic)

in part, with other software, hardware, data, devices, systems, technologies, products, services, functions or capabilities; (iii) transfer, distribute, make available the Service, Data, or Software to any person other than the specific end-user customer identified to SST in the Purchase Documents, sell, resell, sublicense, lease, rent, or loan the Service, Data, or Software, in whole or in part, or (iv) provide use or permit operation of any of the Service, Software or Data by any person other than the original end-user customer designated in the Purchase Documents, nor in or through any application service provider, service bureau, rental or time-sharing arrangement; (v) disassemble, decompile, or otherwise reverse engineer or attempt to reconstruct, derive, or discover, any source code, underlying ideas, algorithms, formulae, routines, file formats, data structures, programming, routines, interoperability interfaces, drawings, or plans from the Data or Software, or any data or information created, compiled, displayed, or accessible through the System, in whole or in part; or (vi) remove, modify or obscure any identification or proprietary or restrictive rights markings or notices from the Data, Software or any component thereof.

SST and its licensors retain all ownership of all intellectual property rights in and to all Data, Software, all computer programs, related documentation, technology, knowhow and methods and processes embodied in or made available to you in connection with the Service, including, without limitation, all patent rights, copyrights, trade secret rights, trademarks and service marks. All rights not expressly granted to you herein are reserved by SST. You shall take all reasonable measures to protect SST's intellectual property rights in the Service and Software, including providing assistance and measures as are reasonably requested by SST from time to time.

You are hereby placed on notice that alteration or removal of copyright management information (including, without limitation, licensor's name and other identifying information, name of the Service, the terms and conditions of this License, and identifying numbers or symbols) embodied in or associated with the Service is prohibited, because such conduct may cause others to infringe our rights in and to the system, Service and/or Software. You may also not obscure or remove any confidentiality, patent, trademark or copyright notices on any component of the Service, or any documentation.

C. TERMINATION. You agree that your right to use the Service, Software and Data will terminate automatically if you violate any of the terms of this License, or fail to timely pay any sums you owe to us or resellers or integrators of our Service, or fail to renew the Service upon expiration of the Service term. In the event of termination, your access to the Data and Software will be terminated, and SST will cease delivering Reviewed Alerts, and disable your access to the Data. Customer agrees that SST shall not be liable to Customer nor to any third party for any suspension of the Service resulting from Customer's nonpayment of fees as described in this section.

D. MODIFICATION TO OR DISCONTINUATION OF THE SERVICE. SST reserves the right at any time and from time to time to modify, temporarily or permanently, the Service (or any part thereof). In the event that SST modifies the Service in a manner which removes or disables a feature or functionality on which Customer materially relies, SST, at Customer's request, shall

use commercially reasonable efforts to restore such functionality to Customer. In the event that SST is unable to substantially restore such functionality, Customer shall have the right to terminate the Agreement and receive a pro-rata refund of the annual Service fees paid under the Agreement for use of the Service which was paid for by Customer but not yet furnished by SST as of the date of such termination. Customer acknowledges that SST reserves the right to discontinue offering the Service at the conclusion of Customer's then current term. Customer agrees that SST shall not be liable to Customer or to any third party for any modification of the Service as described in this section.

E. OTHER RESTRICTIONS. You acknowledge and agree that the source code and internal structure of the Software, Data and Service, as well as documentation, operations manual and training material are our confidential property, and trade secrets, the value of which would be destroyed by disclosure to the public. Use by anyone other than you of the Service, documentation, and Data is prohibited, unless pursuant to a valid assignment under this Agreement.

3. LIMITED EXCLUSIVE WARRANTY. Provided that you comply with your obligations under the terms and conditions stated herein, we warrant that the Software (as defined herein) will be free of defects in workmanship which materially impair the functioning of the Service and Software in substantial conformity with the specifications documentation accompanying the Service.

The Software covered under this limited exclusive warranty consists exclusively of ShotSpotter Alert Console software and user interface, installed and operated locally on customer's computers and devices supplied by SST for your use by on and in connection with a ShotSpotter System, subject to the terms and conditions of the License between you and us.

A. REVIEWED ALERT SERVICE LEVELS. As regards to sonic event review and alert services, subject to the Customer's compliance with its obligations hereunder, and to the disclaimers and limitations set forth in Exhibit A, and in Sections 5(C), 6, 7, 13 and 15 of this Agreement, we agree to provide the service levels forth in Exhibit A, attached hereto.

B. SYSTEM CONFIGURATION AND SERVICE LEVELS.

As regards to System configuration, subject to the Customer's compliance with its obligations hereunder, and to the disclaimers and limitations set forth in Exhibit B, and in Sections 5(C), 6, 7, 13 and 15 of this Agreement, we agree to provide the service levels set forth in Exhibit B, attached hereto.

C. OTHER WARRANTY. SST warrants that the Service, Data and Software shall be free of viruses, Trojan horses, worms, spyware, or other malicious code or components.

The limited exclusive warranties expressly set forth in this Agreement are the only warranties made to you and are provided in lieu of any other warranties (if any) created by any documentation or packaging, or otherwise express or implied. These limited exclusive warranties give you specific legal rights, and you may also have other rights which vary by jurisdiction.



ShotSpotter Service and License Agreement – Standard Terms, Conditions and Support (Domestic)

4. SST SUPPORT. During the term of the Services, SST will make commercially reasonable efforts to promote Customer's successful utilization of the Service, including but not limited to providing Customer with user guides, online help, online training presentation, and online training sessions (as available). SST will provide reasonable efforts to respond via email to requests for support relating to incident classification within 8 hours of the request. In addition, SST will use commercially-reasonable efforts to respond to other support requests within 24 hours of receipt of the request during the period of 8am to 5 pm Monday through Friday. The e-mail support specialist shall be responsible for receiving Customer reports of missed incidents, or errors in the Service, and, to the extent practicable over email or telephone, making commercially-reasonable efforts to assist the Customer in resolving the Customer's reported problems. In the event the problem cannot be resolved telephonically, then SST will use commercially-reasonable efforts to restore functionality of the Service to Service specifications within 72 business hours of receipt of the report.

A. FORENSIC REPORTS. SST, at the specific request of the customer, will produce and provide a maximum of two (2) detailed incident forensic reports per mile, per year, for any ShotSpotter detected incidents, including Reviewed Alerts, if such information is deemed by the customer to be valuable to the customer for investigation follow-up, prosecutorial requirements, or after action review.

Such reports must be requested a minimum of 5 days in advance of when needed, and all such requests must be in writing and addressed to the SST Customer Service Department. Customer should expect delivery of these reports within 5 days after receipt of the request. Additional reports are available within 72 hours of the receipt of an approved purchase order in the amount of \$3,500 per additional report. This benefit shall only be available to Customer if Customer is fully current with payments due under this Agreement. In the case that Customer is not current with their payments, then forensic reports shall not be generated nor provided to Customer until Customer becomes current with its payment obligations.

B. EXPERT WITNESS SERVICES. SST offers reasonable expert witness services. The Customer will be responsible for all travel and per diem reimbursement. At the specific request of the customer, SST will provide individual(s) for the purposes of expert witness testimony for any ShotSpotter detected incidents, including Reviewed Alerts, for which the incident information is deemed by the customer to be valuable to the customer's prosecutorial requirements. Customer understands that SST undertakes to provide individuals whose qualifications are sufficient for such services, but does not warrant that any person or his or her opinion will be accepted by every court. SST requires at least fourteen (14) days prior notice of such a requirement in writing from the Customer. Customer must include dates, times, specific locations and a point of contact for SST personnel. Due to the nature of legal proceedings, SST cannot guarantee that its services described in this section shall produce the outcome, legal or otherwise, which Customer desires. Payment for expert witness services described

shall be due and payable when services are rendered regardless of the outcome of the proceedings.

5. TERM, RENEWAL

A. TERM AND COMMENCEMENT. The Service term shall be specified in the Purchase Document and will commence on the date that the Service is available to the Customer via the Alert Console.

B. RENEWAL. The Service may be renewed for successive periods of one year each, in accordance with the following procedure. Not later than thirty (30) days prior to the expiration of the Service term then in effect, Customer shall issue a purchase order and tender payment in full for the next annual renewal (unless otherwise agreed in writing by SST), and the term shall be renewed for another year. SST shall provide Customer with renewal fees, terms and conditions for the next successive renewal term upon Customer's request but no later than 90 days from the expiration date. Customer acknowledges that the Service fees, terms and conditions and service levels hereunder are subject to change and that such fees, terms and conditions, and service levels may vary from those applicable to this Agreement in successive renewal terms.

If Customer fails to renew in a timely manner and hence allows the Service term to expire then the Service will terminate in accordance with Section 2. C. At its discretion, SST may remove the ShotSpotter Gunshot Location System and any components from the coverage area at that time. If SST does not remove the ShotSpotter Gunshot Location System from the coverage area, Customer may reinstate the Service at a later date by renewing, however Customer will not have access to any Reviewed Alerts that they would have had access to during the lapsed period.

C. COMMERCIAL CARRIER DATA SERVICES. The ShotSpotter Gunshot Location System may use wired, wireless or cellular wireless acoustic sensor communications which necessitates the existence of a real-time data communications channel from each sensor to the hosted servers via a commercial carrier. The unavailability or deterioration of the quality of such wired, wireless or wireless cellular communications may impact the ability of SST to provide the Service. In such circumstances SST will use commercially reasonable efforts to obtain alternate wired or wireless cellular communications or adjust the coverage area by up to 10%. In the event SST is unable to do so, SST will terminate the Service and refund a pro-rata portion of the annual Service fee to Customer.

6. IP INFRINGEMENT: EXCLUSIVE REMEDY. Subject to the terms and conditions hereof, SST agrees to defend and indemnify Customer (provided it is the actual End-user Customer of the Service) from and against losses, suits, damages, liability and expenses (including reasonable attorney fees) arising out of a claim asserted in a lawsuit or action against the end-user customer by a third party unrelated to the customer, in which such third party asserts a claim that the Service and/or Software, when used in accordance with SST's specifications and for the purposes intended, infringes any United States patent which was issued by the U.S. Patent and Trademark Office, or United States copyright which



ShotSpotter Service and License Agreement – Standard Terms, Conditions and Support (Domestic)

was registered by the U.S. Copyright Office, as of the effective date of Customer's agreement to purchase the ShotSpotter Flex System.

Provided, however, that SST shall have the right to choose counsel to defend such suit and/or action, and to control the settlement (including determining the terms and conditions of settlement) and the defense thereof, and that Customer shall provide SST with reasonably prompt written notice of any such suit or action, and of any oral, written or other communication or other information or circumstances of which Customer becomes aware that could reasonably be expected to lead to such a suit or action (including any and all cease and desist demands or warnings, and offers or invitations to enter license agreements), and shall provide SST all reasonable assistance and information in connection with SST's investigation and defense of any claim of infringement.

Further provided, however, that this section shall not apply and SST shall have no obligation to defend and indemnify Customer in the event the Customer or a reseller, integrator, service provider or supplier modifies, alters, substitutes, or supplements any of the Service, or Software, or to the extent that the claim of infringement arises from or relates to the integration, bundling, merger or combination of any of the same with other hardware, software, systems, technologies, or components, functions, capabilities or applications not licensed by SST as part of the Service, nor shall it apply to the extent that the claim of infringement arises from or relates to meeting or conforming to any instruction, design, direction or specification furnished by the Customer, nor to the extent that the Service or Software are used for or in connection with any purpose, application or function other than detecting and locating gunshots exclusively through acoustic means.

If, in SST's opinion, the Service, or Software may, or is likely to become, the subject of such a suit or action, does become the subject of a claim asserted against a customer in a lawsuit which SST is or may be obliged to defend under this section, or is determined to infringe the foregoing patents or copyrights of another in a final, non-appealable judgment subject to SST's obligations under this section, then SST may in full and final satisfaction of any and all of its obligations under this section, at its option: (1) procure for Customer the right to continue using the affected Service or Software, (2) modify or replace such Service or Software to make it or them non-infringing, or (3) refund to the purchaser a pro-rata portion of the annual Service price paid for the Service System

The foregoing section states the entire liability of SST and customer's and its suppliers' exclusive remedy for or relating to infringement or claims or allegations of infringement of any patent, copyright, or other intellectual property rights in or to the system, system components, and software. This section is in lieu of and replaces any other expressed, implied or statutory warranty against infringement of any and all intellectual property rights.

7. LIMITED WARRANTIES EXCLUSIVE; DISCLAIMERS *IMPORTANT; PLEASE READ CAREFULLY*

To the maximum extent permitted by applicable law, the limited warranties expressly set forth above are exclusive, and in lieu of all other warranties, whether written, oral, express, implied or statutory. There are no warranties that extend beyond those expressly set forth herein, and no prior statements, representations, or course of dealing by any SST representatives shall vary, expand or modify these warranties.

To the maximum extent permitted by applicable law, all other representations or warranties, express, implied, or statutory, including without limitation, any warranties of non-infringement, quality, suitability, merchantability, fitness for a particular purpose or otherwise of any services or any goods provided incidental to the services provided under this agreement are hereby expressly disclaimed and superseded by the exclusive limited express warranty and disclaimers set forth herein.

Without limiting the generality of the foregoing limitations and disclaimers, while the Service is not designed, sold, or intended to be used to detect, intercept, transmit or record oral or other communications of any kind, SST cannot control how the Service is used, and, accordingly, SST does not warrant or represent, expressly or implicitly, that use of the Service will comply or conform to the requirements of federal, state or local statutes, ordinances and laws, or that use of the Service will not violate the privacy rights of third parties. You shall be solely responsible for using the Service in full compliance with applicable law and the rights of third persons.

Further, regardless of any prior statements, representations, or course of dealings by any SST representatives, we do not warrant or represent, expressly or implicitly, that the Service or its use will: result in the prevention of crime or hostile enemy action, apprehension or conviction of any perpetrator of any crime, military prosecution of any enemy force, or detection or neutralization of any criminal, combatant or threat; prevent any loss, death, injury, or damage to property due to the discharge of a firearm or other weapon; in all cases result in a Reviewed Alert for all firearm discharges within the designated coverage area; or that the SST-supplied network will remain in operation at all times or under all conditions.

SST expressly disclaims, and does not undertake or assume any duty, obligation or responsibility for any decisions, actions, reactions, responses, failure to act, or inaction, by Customer as a result of or in reliance on, in whole or in part, any Services or Reviewed Alerts provided by SST, or for any consequences or outcomes, including any death, injury, or loss or damage to any property, arising from or caused by any such decisions, actions, reactions, responses, failure to act, or inaction. It shall be the sole and exclusive responsibility of the Customer to determine appropriate decisions, actions, reactions or responses, including whether or not to dispatch emergency responder resources.



ShotSpotter[®] FLEX[™] Service and License Agreement – Standard Terms, Conditions and Support (Domestic)

The Customer hereby expressly assumes all risks and liability associated with any and all action, reaction, response, and dispatch decisions, and for all consequences and outcomes arising from or caused by any decisions made or not made by the Customer in reliance, in whole or in part, on any Services provided by SST, including any death, injury, or loss or damage to any property.

Any and all warranties, express or implied, of fitness for high risk purposes requiring fail-safe performance are hereby expressly disclaimed.

You and we each acknowledge and agree that the Service is not a consumer good, and is not intended for sale to or use by or for personal, family or household use.

8. YOUR OBLIGATIONS. You acknowledge and agree that SST's duties, including warranty obligations, and ability to perform its obligations to you shall be predicated and conditioned upon your timely performance of and compliance with your obligations hereunder, including, but not limited to:

A. You agree to pay all sums due under the purchase agreement or order as and when they are due pursuant to the terms of such agreement or order. Actual access and use of the SST Service shall constitute evidence that the Service is active and the final payment is due.

B. You agree to use your best efforts to timely perform and comply with all of your obligations allocated to you in the Purchase Documents and/or other contract documents, including, without limitation, provisions regarding assisting SST in obtaining sensor site permissions from premises owners or lessors, in locations reasonably acceptable to SST, which obligations are incorporated by reference and made a part hereof. Unless the Statement of Work or other contract documents signed by SST allocates such obligations to SST expressly, customer shall be responsible for securing from premises owners or lessors all rights necessary to enter onto their premises to install sensors, and to place, operate and maintain such sensors on such premises. SST's duties, including warranty obligations to you shall be predicated and conditioned upon your timely performance of and compliance with your obligations set forth herein, and in the Purchase Documents.

C. You shall not permit any alteration, modification, substitution or supplementation of the SST Service or web portal, or the combining, connection, merging, bundling, or integration of the SST Service or web portal into or with any other system, equipment, hardware, software, technology, function or capability, without our prior written consent.

D. Unless otherwise expressly agreed in advance in writing by SST, you shall not resell, transfer, distribute or allow access to the Service or web portal or any portion thereof, to any person other than the specific end-user previously identified to SST in the Purchase Documents, and shall not authorize or appoint any contractors, subcontractors, original equipment manufacturers, value added integrators, systems integrators or other third parties to operate, have access to, or sublicense the Products.

E. **Customer Must Have Internet Access.** In order to use the Service, Customer must have or must obtain access to the World Wide Web to enable a secure https connection from the customers work station to SST's hosted services, either directly or through devices that access Web-based content. Customer must also provide all equipment necessary to make such (and maintain such) connection.

F. **Passwords and Access.** Customer may designate up to the number of users under Customer's account which corresponds to the number of Seats purchased by Customer, and Customer may provide and assign unique passwords and user names for each Seat purchased. Customer will be responsible for the confidentiality and use of Customer's password and user names, and agrees that sharing passwords and/or user names with unauthorized users is prohibited.

G. You shall comply with all applicable laws, rules and regulations relating to the goods and services provided hereunder.

9. INTELLECTUAL PROPERTY RIGHTS: LIMITED LICENSE.

We or our licensors retain all ownership of all intellectual property rights in and to all data, software, computer programs, related documentation, technology, knowhow and processes embodied in or made available to you in connection with the Service, and Software, including, without limitation, all patent rights, copyrights, trade secret rights, trademarks and service marks. Your rights to install and use the Data and Software are limited, and shall be strictly in accordance with the License set forth in Section 2 hereof. Any and all rights not granted expressly in such License are hereby reserved.

10. EXPORT CONTROL. You acknowledge that the ShotSpotter Flex System is the subject of a Commodity Jurisdiction determination by the United States Department of State, and has been determined to be a controlled commodity, software and/or technology subject to the United States Export Administration Regulations of the U.S. Department of Commerce. Accordingly, no part of the Data, Software, ShotSpotter Flex System or any GLS System component thereof may be transferred, consigned, shipped, delivered, received, exported or re-exported, nor may any technical data directly relating to any of the same or the underlying information or technology be disclosed, downloaded, uploaded, transmitted, received, furnished, or otherwise provided, to, by or through any person, government, country, or to any end-user, or for any end-uses, except in compliance with applicable U.S. export control laws administered by the U.S. Government, and any other applicable U.S. laws, including the sanctions laws administered by the U.S. Department of Treasury, Office of Foreign Assets Control (OFAC), the U.S. Anti-Boycott regulations, and any applicable laws of your country. In this respect, no resale, transfer, or re-export of any ShotSpotter Flex System exported to you pursuant to a license from the U.S. Department of Commerce may be resold, transferred, or reported without prior authorization by the U.S. Government. Customer agrees not to export, re-export or engage in any "deemed export," or to transfer or deliver, or to disclose or furnish, to any foreign (non-U.S.) government, foreign (non-U.S.) person or end-user, or to any U.S. person or entity, any of the ShotSpotter Flex System, GLS System components, Data, Software,



ShotSpotterTM Service and License Agreement – Standard Terms, Conditions and Support (Domestic)

Services, or any technical data or output data or direct data product thereof, or any service related thereto, in violation of any such restrictions, laws or regulations, or without all necessary registrations, licenses and or approvals. Unless otherwise agreed and so specified in the Purchase Documents, you shall obtain and bear all expenses relating to any necessary determinations, registrations, licenses and/or exemptions with respect to its exportation, re-exportation or “deemed export” of the ShotSpotter Flex System, Data, Software or any GLS System Components or Services, as well as with respect to the disclosure or furnishing of any technical data or other information and services relating to any of the same.

In addition to compliance with the foregoing, and without limiting the generality thereof, Customer shall not disclose, discuss, download, ship, transfer, deliver, furnish, or otherwise export or re-export any such item(s) to or through: (a) any person or entity on the U.S. Department of Commerce Bureau of Industry and Security’s List of Denied Persons or Bureau of Export Administration’s anti-proliferation Entity List; (b) any person on the U.S. Department of State’s List of Debarred Parties; (c) any person or entity on the U.S. Treasury Department Office of Foreign Asset Control’s List of Specially Designated Nationals and Blocked Persons; or (d) any other end-user or for any end-use prohibited by law or regulation, as any and all of the same may be amended from time to time, or any successor thereto.

11. PROTECTION OF CONFIDENTIAL INFORMATION.

Unless either party (the “Receiving Party”) obtains prior written consent from the other (the “Disclosing Party”), the Receiving Party agrees that it will not reproduce, use for purposes other than those expressly permitted herein, disclose, sell, license, afford access to, distribute, or disseminate any information: i) obtained from the Disclosing Party in connection with the System purchase, installation or operation, and designated by it from time to time as confidential; ii) the documentation, use and operations manuals; and output data created or compiled by the ShotSpotter Flex System; iii) your use of the ShotSpotter Flex System or technology, your deployment methodology, results, or related facts; iv) the contractual terms and payment terms applicable to the purchase of the ShotSpotter Flex System or technology, except as required by local law (collectively, “Confidential Information”). Unless a section of the Purchase Document(s) specifically identifies the identity of Customer as Confidential Information, the fact that Customer is a customer of SST shall not itself be considered Confidential Information, nor shall the name of any city in which the ShotSpotter GLS System is deployed be considered confidential information. Recipient’s obligations under this section shall not apply to any of Discloser’s Confidential Information that Recipient can document: (a) was in the public domain at or subsequent to the time such Confidential Information was communicated to Recipient by Discloser through no fault of Recipient; (b) was rightfully in Recipient’s possession free of any obligation of confidence at or subsequent to the time such Confidential Information was communicated to Recipient by such Discloser; (c) was developed by employees or agents of Recipient independently of and without reference to any of Discloser’s Confidential Information; or (d) was communicated by Discloser to an

unaffiliated third party free of any obligation of confidence. A disclosure by Recipient of any of Discloser’s Confidential Information (a) in response to a valid order by a court or other governmental body; (b) as otherwise required by law; or (c) necessary to establish the rights of either party under this Agreement shall not be considered to be a breach of this Agreement by such Recipient; provided, however, such Recipient shall provide prompt prior written notice thereof to such Discloser to enable Discloser to seek a protective order or otherwise prevent such disclosure. Receiving Party shall use reasonable controls to protect the confidentiality of and restrict access to all such Confidential Information to those persons having a specific need to know the same for purposes expressly authorized herein, and render unreadable prior to discarding, all records containing our Confidential Information. In any event such controls shall not be less protective than those Receiving Party uses to secure and protect its own confidential, but not “Classified” or otherwise Government-legended, information

12. NOTICES. Any notice or other communication required or permitted to be given under this Agreement shall be in writing at such party’s address or number or at such party’s last known address or number. The party’s addresses may be changed by written notice to the other party as provided herein.

13. FORCE MAJEURE. In no event shall SST be liable for any delay or default in its performance of any obligation under this or any other agreement caused directly or indirectly by an act or omission of Customer, or persons acting under its direction and/or control, fire, flood, act of God, an act or omission of civil or military authority of a state or nation, strike, lockout or other labor disputes, inability to secure, delay in securing, or shortage of labor, materials, supplies, transportation, or energy, failures, outages or denial of services of wireless, power, telecommunications, or computer networks, acts of terrorism, sabotage, vandalism, hacking, natural disaster or emergency, war, riot, embargo or civil disturbance, breakdown or destruction of plant or equipment, or arising from any cause whatsoever beyond SST’s reasonable control. At SST’s option and following notice to Customer, any of the foregoing causes shall be deemed to suspend such obligations of SST so long as any such cause shall prevent or delay performance, and SST agrees to make and Customer agrees to accept performance of such obligations whenever such cause has been remedied.

14. DEFAULT; REMEDIES. Upon the occurrence of any default by or breach of your obligations, we may at our option, effective immediately, either: (i) terminate our future obligations under this agreement, terminate your License to use the Service and Software, or (ii) accelerate and declare immediately due and payable all remaining charges for the remainder of the agreement and proceed in any lawful manner to obtain satisfaction of the same. In either case, you shall also be responsible for paying court costs and reasonable attorneys’ fees incurred by or on behalf of us, as well as applicable repossession, shipping, repair and refurbishing costs.

15. LIMITATIONS ON LIABILITY. In no event shall either party, or any of its affiliates or any of its/their respective directors,



ShotSpotter Service and License Agreement – Standard Terms, Conditions and Support (Domestic)

officers, members, attorneys, employees, or agents, be liable to the other party under any legal or equitable theory or claim, for lost profits, lost revenues, lost business opportunities, exemplary, punitive, special, or consequential damages, each of which is hereby excluded by agreement of the parties, regardless of whether such damages were foreseeable or whether any party or any entity has been advised of the possibility of such damages.

In any event, except for its IP infringement indemnity obligations under section 6 hereof, SST's cumulative liability for all losses, claims, suits, controversies, breaches or damages for any cause whatsoever (including, but not limited to, those arising out of or related to this agreement) and regardless of the form of action or legal theory shall not exceed two times the amount paid to SST under this agreement, or the amount of insurance maintained by SST available to cover the loss, whichever is greater. The foregoing limitations shall apply without regard to any failure of essential purpose of any remedies given herein.

16. GENERAL PROVISIONS.

A. NO AGENCY. Neither SST nor any of its employees is an agent or representative of Customer and the Customer is solely responsible for obtaining any required authorizations from any governmental agency, body or commission and for compliance therewith.

B. COMPLIANCE WITH LAWS AND TAXES. You shall comply with all applicable laws, statutes and regulations relating to the sale, distribution, and use of the Service and the performance of your duties and obligations hereunder. All prices are exclusive of all tariffs, customs duties, imposts, national, federal, provincial, state, and local VAT, excise, sales, use and similar taxes. You will be pay and be responsible for paying any and all such taxes and tariffs, when applicable.

C. EQUAL OPPORTUNITY CONTRACT CLAUSE. SST is committed to the provisions outlined in the Equal Opportunity Clauses of Executive Order 11246, (41 CFR 60-1.4), section 503 of the Rehabilitation Act of 1973, (41 CFR 60-741.5(a)), section 402 of the Vietnam Era Veterans Readjustment Act of 1974, (41 CFR 60-250.5(a)), and, the Jobs for Veterans Act of 2003, (41 CFR 60-300.5(a)) as well as any other regulations pertaining to these orders.

D. SEVERABILITY AND INTERPRETATION. If any provision, in whole or in part, of this Agreement and/or the Purchase Documents of which it is a part is held invalid or unenforceable for any reason, the invalidity shall not affect the validity of the remaining provisions, and there shall be substituted for the invalid provision a valid provision which most closely approximates the intent and economic effect of the invalid provision. No part or provision shall be interpreted in favor or against any party because such party or its counsel drafted the relevant provision. No course of dealing, usage, custom of trade, or communication between the parties shall modify or alter any of the rights or obligations of the parties under this Agreement and Purchase Document(s).

E. INTEGRATION, AMENDMENT AND WAIVER. This Agreement, and the Purchase Document(s) of which it is a part, together with any other exhibits or appendices thereto, constitute the entire understanding between SST and you. No other documents or representations shall be used in interpreting it. Any and all written or oral agreements heretofore existing between the parties are expressly cancelled and/or superseded. Any other document, proposal, specification, statement of work, marketing collateral, or representation which may vary, alter, amend or supplement these terms and conditions will not be binding unless agreed to in a writing signed by appropriate representatives of both SST and Customer. No modification, variance, amendment or waiver of any part of Agreement or Purchase Document(s) shall be binding upon either party, whether written, oral, or in any other medium, unless made in writing and signed by authorized representatives of both parties. All the parties' rights and duties are material and time is of the essence; no waiver of any rights hereunder shall be deemed effective unless in writing executed by the waiving party; no waiver of either party's breach of any provision of this Agreement or Purchase Documents shall constitute a waiver of any prior or subsequent breach of the same or any other provision, and no failure to exercise, and no delay in exercising, any right(s) hereunder on either party's part shall operate as a waiver of any such right; all of the parties' rights are cumulative; and, no single or partial exercise of any right hereunder shall preclude further exercise of such right or any other right.

F. BENEFIT AND BURDEN; ASSIGNMENT. Subject to the following provisions, this Agreement and the Purchase Documents of which they are a part shall be binding upon permitted successors and assigns and shall inure to the benefit of the parties and their respective permitted successors and assigns only. **Notwithstanding that the Service and Software, and its output data may be used for law enforcement, military, public safety, and force protection purposes, there are no third party beneficiaries intended to benefit from these general terms and conditions of sale, or the agreement or order of which they are a part.** Customer may not assign or transfer this Agreement and the Purchase Documents of which they are a part, or any of the rights granted therein, in whole or in part, by operation of law or otherwise, without SST's express prior written consent. SST may assign or transfer this Agreement and the Purchase Documents and/or SST's rights and obligations hereunder, in whole or in part, to any third party without the necessity of obtaining Customer's consent. No assignee for the benefit of Customer's creditors, custodian, receiver, trustee in bankruptcy, debtor in possession, sheriff or any other officer of a court, or other person charged with taking custody of Customer's assets or business, shall have any right to continue or to assume or to assign these without SST's express consent.

G. GOVERNING LAW AND DISPUTE RESOLUTION. The validity, performance, and construction of this agreement shall be governed by the laws of the State of Florida, with venue lying in Miami-Dade County. The United Nations Convention on Contracts for the International Sale of Goods is expressly disclaimed and shall not apply. If the parties disagree as to any matter arising under this Agreement or the relationship and



ShotSpotter ^{FLEX™} Service and License Agreement – Standard Terms, Conditions and Support (Domestic)

dealings of the parties hereto, then SST and Customer shall promptly consult with one another and make diligent, good faith efforts to resolve the disagreement, by negotiation. Should the dispute not be resolved within a reasonable time after commencement of such negotiations, it shall be mediated before one or more mediators mutually acceptable to both parties. Costs of mediation will be allocated as part of the resolution in mediation, but absent such resolution, shall be paid equally by the parties. In addition to any other remedies to which it may be entitled, the prevailing party shall be entitled to recover its reasonable attorneys'

fees and costs (including expert witness fees and costs) incurred in connection with enforcing its rights or defending itself.

All parties hereby irrevocably waive any and all rights they may have to a trial by jury in any judicial proceeding involving any claim relating to or arising under this agreement or any other agreement between the parties hereto.



ShotSpotter[®] FLEX™ Service and License Agreement – Standard Terms, Conditions and Support (Domestic)

EXHIBIT A - Reviewed Alert Service Levels

The ShotSpotter Flex System detects loud impulsive incidents, classifies them as gunfire, fireworks, or other, and sends them to the SST Incident Review Center. Within 15 seconds of receiving the incident audit download, SST review personnel will begin analysis of the incident, which will include observing sensor audio wave files and listening to sensor audio. The outcome of this review is intended to confirm or change the System's classification of the incident type, and, depending on the reviewer's confidence level that the incident is or may be gunfire, will result in an alert ("Reviewed Alert") sent to the Customer's Alert Console, based on the following criteria:

<u>Incident Type</u>	<u>Action</u>
High confidence incident is gunfire	Reviewed Alert sent to Customer Alert Console
Uncertain if incident is gunfire or not	Reviewed Alert sent to Customer Alert Console
Low confidence incident is gunfire	No alert will be sent; incident available for customer review in the incident history available through the Customer Alert Console

Reviewed Alerts are sent to the Customer Alert Console. Information in a Reviewed Alert will include the location of the incident, the reviewer's qualitative assessment of the confidence level that the incident is or may be gunfire, along with other pertinent information and data.

Specifically, information provided in a Reviewed Alert will include:

- "Dot on the map" and closest parcel address denoting the location of the incident
- Qualitative Confidence that the incident is gunfire: High or Uncertain
- Qualitative Severity: Single shot, multiple shots, drive by shooting, full automatic
- Comments (if any)

The majority of incidents will be processed within 45 seconds of the System notifying the SST Incident Review Center of an incident and 90% of the incidents will be processed in less than 60 seconds. In the unlikely event that the review center loses connection to the hosting facility or the review center is unable to process the incident within approximately 60 seconds for some reason, the system will automatically route unreviewed incidents directly to the customer based on the systems classification of the incident. In the event the reviewed incident data reveals information that will aid in responder situational awareness, SST may (but is not obligated to) include this information as Comments in the Reviewed Alert. In complex incidents SST may (but is not obligated to) send an informational update shortly after the initial Reviewed Alert to the Customer's Alert Console to provide additional situational awareness information.

During major holidays such as in the case of New Years Eve, Independence Day, and Cinco de Mayo, most communities experience a large increase in firework activity. During these periods, usually at least 48 hours in advance of the holiday, during the holiday and 48 hours following the holiday, SST will put the system into fireworks suppression mode so that the reviewers can focus their response to incidents classified as gunfire. SST will inform the customer prior to the system being placed in fireworks suppression mode and when fireworks suppression mode is disabled. The actual timing of fireworks suppression mode being active is determined by the review center based on the level of fireworks being discharged. While in fireworks suppression mode, fireworks incident alerts are not sent to the reviewer nor the customer alert console, however all firework incidents continue to be stored in the data base should any of this information be needed at a later time.



ShotSpotter FLEX™ Service and License Agreement – Standard Terms, Conditions and Support (Domestic)

The purpose of the Reviewed Alert Service is to provide incident data to the Customer, reviewed, analyzed and classified in the manner described above, in situations where the analyst's qualitative confidence that an incident is or may be gunfire meets the criteria set forth above. However, it is the sole responsibility of the Customer to interpret the data provided, and to determine any appropriate follow-up reaction or response, including whether or not to dispatch emergency responder resources based on a Reviewed Alert. SST does not undertake any obligation, duty or responsibility for reaction, response, or dispatch decisions, which are solely and exclusively the responsibility of Customer, or for the consequences or outcomes of any decisions made or not made by the Customer in reliance, in whole or in part, on any services provided by SST.

The Alert Console provides the Customer with full and immediate access to all incident history including the same information SST uses in its internal review process. This information includes, among other things, the initial incident classification and any reclassifications of an incident, incident audio wave forms, and incident audio files. This enables the Customer to perform its own incident reviews, change classification based on evidence found at the location, and run various reports. This data access is available as long as the Customer is under active subscription.



ShotSpotter Service and License Agreement – Standard Terms, Conditions and Support (Domestic)

EXHIBIT B - System Configuration and Service Levels

SST will deploy a ShotSpotter Flex system over the agreed upon coverage area. The system will be designed to detect at least 80% of the unsuppressed outdoor gunfire, with a location accuracy to the shooter's location within 25 meters in at least 80% of the incidents. These performance levels are predicated on the Customer assisting SST in acquiring permission for SST personnel to install and maintain the sensors at SST-recommended sites. In the event that SST cannot deploy sensors at all such sites, the foregoing performance levels may be compromised.

The sensors send incident information to a server in a SST hosting facility via third party cellular, wireless or wired networks. SST is not responsible for outages on the third party networks. SST will be responsible for installation and maintenance of the sensors and cost of the sensor communications to the hosted location server. The hosted server infrastructure (exclusive of communications networks) shall be maintained at 99.9% application availability exclusive of scheduled maintenance that SST will make reasonable efforts to coordinate with the customer.

The connection between the reviewer's console and the Customer's Alert Console is secured using a secure message protocol over http connection, where individual messages are encrypted using the same Public Key Infrastructure ("PKI") as a secure VPN connection.

Providing local access to the internet for the Alert Console is the responsibility of the Customer, as is providing a work station with access to the internet. The Customer may choose to set up multiple sessions of Alert Consoles as a form of redundancy.

AMENDMENT NO. 1

This is an amendment to the Service and License Agreement – Standard Terms, Conditions and Support (Domestic) which is an exhibit to Proposal MIAGRDNFLF04232012 signed by ShotSpotter, Inc. ("ShotSpotter") and City of Miami Gardens, FL ("City") on May 10, 2012 (the "Agreement").

The following Section 17 shall be added to the Agreement as follows:

17. INDEMNIFICATION. ShotSpotter hereby agrees to defend, indemnify and save harmless the City against any and all liability, damage, cost, charges, reasonable attorney's fees, and expenses ("Loss") incurred by the City as a result of a claim or action by a third party against the City ("Claim"), but only where such Loss is incurred by the City solely as a result of the negligent act or omission, or willful misconduct, of ShotSpotter in the performance of ShotSpotter's obligations under this Agreement. If a Claim is made or brought against the City for which ShotSpotter may be responsible hereunder, in whole or in part, then the City shall be notified and shall handle or participate in the handling of the portion of the claim for which it may be responsible as a result of this section, provided that ShotSpotter must agree in writing to settlement of any claim or portion of a claim for which it may be responsible, and shall have the right to choose counsel retained to handle such claim or part of a claim. Provided, further, that ShotSpotter's liability under this Section shall be subject to and limited by the limitations and disclaimers set forth in Sections 3(a), 3(c), 5(c), 6, 7, 13 and 15 of this Agreement. Provided further that nothing contained herein shall be deemed a waiver of sovereign immunity by City .

IN WITNESS THEREOF, the parties have caused this Amendment to be executed by their duly authorized representatives on the date(s) shown below.

SHOTSPOTTER, INC.

By:


(Authorized Signature)

Name:

Gregg Rowland

Title:

SVP

Date:

11/26/12

CUSTOMER

By:


Dr. Crew, City Manager

Attest:


Ronetta Taylor, City Clerk

Date:

Approved for Legal Form and Sufficiency


Sonja K. Dickens, City Attorney

AMENDMENT NO. 1

This is an amendment to the Service and License Agreement – Standard Terms, Conditions and Support (Domestic) which is an exhibit to Proposal MIAGRDNFLF04232012 signed by ShotSpotter, Inc. ("ShotSpotter") and City of Miami Gardens, FL ("City") on May 10, 2012 (the "Agreement").

The following Section 17 shall be added to the Agreement as follows:

17. INDEMNIFICATION. ShotSpotter hereby agrees to defend, indemnify and save harmless the City against any and all liability, damage, cost, charges, reasonable attorney's fees, and expenses ("Loss") incurred by the City as a result of a claim or action by a third party against the City ("Claim"), but only where such Loss is incurred by the City solely as a result of the negligent act or omission, or willful misconduct, of ShotSpotter in the performance of ShotSpotter's obligations under this Agreement. If a Claim is made or brought against the City for which ShotSpotter may be responsible hereunder, in whole or in part, then the City shall be notified and shall handle or participate in the handling of the portion of the claim for which it may be responsible as a result of this section, provided that ShotSpotter must agree in writing to settlement of any claim or portion of a claim for which it may be responsible, and shall have the right to choose counsel retained to handle such claim or part of a claim. Provided, further, that ShotSpotter's liability under this Section shall be subject to and limited by the limitations and disclaimers set forth in Sections 3(a), 3(c), 5(c), 6, 7, 13 and 15 of this Agreement. Provided further that nothing contained herein shall be deemed a waiver of sovereign immunity by City.

IN WITNESS THEREOF, the parties have caused this Amendment to be executed by their duly authorized representatives on the date(s) shown below.

SHOTSPOTTER, INC.

By: _____

(Authorized Signature)

Name: _____

Title: _____

Date: _____

CUSTOMER _____

By: _____

Dr. Crew, City Manager

Attest: _____

Ronetta Taylor, City Clerk

Date: _____

Approved for Legal Form and Sufficiency

Sonja K. Dickens, City Attorney

AMENDMENT NO. 1

This is an amendment to the Service and License Agreement – Standard Terms, Conditions and Support (Domestic) which is an exhibit to Proposal MIAGRDNFLF04232012 signed by ShotSpotter, Inc. (“ShotSpotter”) and City of Miami Gardens, FL (“City”) on May 10, 2012 (the “Agreement”).

The following Section 17 shall be added to the Agreement as follows:

17. INDEMNIFICATION. ShotSpotter hereby agrees to defend, indemnify and save harmless the City against any and all liability, damage, cost, charges, reasonable attorney's fees, and expenses (“Loss”) incurred by the City as a result of a claim or action by a third party against the City (“Claim”), but only where such Loss is incurred by the City solely as a result of the negligent act or omission, or willful misconduct, of ShotSpotter in the performance of ShotSpotter’s obligations under this Agreement. If a Claim is made or brought against the City for which ShotSpotter may be responsible hereunder, in whole or in part, then the City shall be notified and shall handle or participate in the handling of the portion of the claim for which it may be responsible as a result of this section, provided that ShotSpotter must agree in writing to settlement of any claim or portion of a claim for which it may be responsible, and shall have the right to choose counsel retained to handle such claim or part of a claim. Provided, further, that ShotSpotter’s liability under this Section shall be subject to and limited by the limitations and disclaimers set forth in Sections 3(a), 3(c), 5(c), 6, 7, 13 and 15 of this Agreement. Provided further that nothing contained herein shall be deemed a waiver of sovereign immunity by City .

IN WITNESS THEREOF, the parties have caused this Amendment to be executed by their duly authorized representatives on the date(s) shown below.

SHOTSPOTTER, INC.

By:


(Authorized Signature)

Name:

Gregg Rowland

Title:

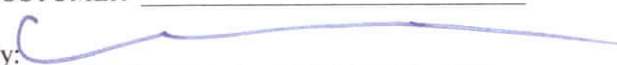
SRP

Date:

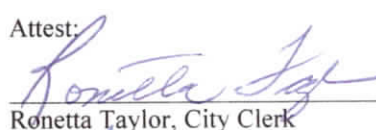
11/26/12

CUSTOMER

By:


Dr. Crew, City Manager

Attest:


Ronetta Taylor, City Clerk

Date:

Approved for Legal Form and Sufficiency


Sonja K. Dickens, City Attorney

AMENDMENT NO. 2

This is an addendum to the Service and License Agreement – Standard Terms, Conditions and Support (Domestic) which is an exhibit to Proposal MIAGRDNFLF04232012 signed by ShotSpotter, Inc. (“ShotSpotter”) and City of Miami Gardens, FL (“City”) on May 10, 2012 (the “Agreement”). This Addendum supplements the Agreement to address installation of ShotSpotter sensors on street light poles as provided in this Addendum, but, otherwise, the Agreement, and all terms and conditions of the Agreement remain in force and effect.

WHEREAS: ShotSpotter desires to install ShotSpotter sensors on street lights owned by Florida Power & Light Company, Inc. (“FPL”) in order to provide gunshot detection and location services to City; and

WHEREAS: FPL will only enter into an agreement with the City for such installation; and

WHEREAS: City has agreed to enter into ATTACHMENT TO STREET LIGHTS: PILOT AGREEMENT (“FPL Agreement”), a copy of which is attached as Exhibit 1, with FPL in order to allow ShotSpotter to install sensors on FLP street light poles;

NOW, THEREFORE:

ShotSpotter agrees to perform all installation work under the FPL Agreement in accordance with requirements for such installation work specified in Articles II and III of the FPL Agreement.

ShotSpotter agrees to reimburse City for all Attachment and Removal Fees billed to City by FPL under the FPL Agreement, including, the fees described in Article IV of the FPL Agreement. City shall invoice ShotSpotter for such charges, and each invoice shall be accompanied by a copy of the FPL invoice. ShotSpotter also agrees to reimburse the City for all insurance premiums to be paid by the City for required insurance relating to the FPL Agreement. City shall mail the invoices to:

ShotSpotter, Inc.
Attn: Accounts Payable
7979 Gateway Blvd., Suite #210
Newark, CA 94560

Alternatively, City mail e-mail the invoice to accounting@shotspotter.com.

ShotSpotter hereby agrees to release, indemnify, defend, save and hold harmless the City, and Florida Power & Light Company, its parent, subsidiaries, affiliates and their respective officers, directors and employees (and other owners of equipment attached to any FPL facility), from all claims, demands, liabilities and suits due to or caused by negligence of ShotSpotter for

bodily injuries or death to person(s), service interruptions or damage to property resulting in connection with the performance of installation work by ShotSpotter

So that ShotSpotter may comply with its obligations in a timely manner, the City agrees to deliver to ShotSpotter, within two (2) business days, any notices or requests for action the City receives from FPL.

IN WITNESS THEREOF, the parties have caused this Agreement to be executed by their duly authorized representatives on the date(s) shown below.

SHOTSPOTTER, INC.

By: _____

(Authorized Signature)

Name: _____

Title: _____

Date: _____



CUSTOMER _____

By: _____

Dr. Crew, City Manager

Attest: _____

Ronetta Taylor, City Clerk

Date: _____

Approved for Legal Form and Sufficiency

Sonja K. Dickens, City Attorney

AMENDMENT NO. 3

This is an addendum to the Service and License Agreement – Standard Terms, Conditions and Support (Domestic) which is an exhibit to Proposal MIAGRDNFLF04232012 signed by ShotSpotter, Inc. (“ShotSpotter”) and City of Miami Gardens, FL (“City”) on May 10, 2012 (the “Agreement”). This Addendum supplements the Agreement to address installation of ShotSpotter sensors on buildings owned by The School Board of Miami-Dade County as provided in this Addendum, but, otherwise, the Agreement, and all terms and conditions of the Agreement remain in force and effect.

WHEREAS: ShotSpotter desires to install ShotSpotter sensors on buildings owned by The School Board of Miami-Dade County, Florida, a political subdivision of the State of Florida, (“The School Board”) in order to provide gunshot detection and location services to City; and

WHEREAS: The School Board will only enter into an agreement with the City for such installation; and

WHEREAS: City has agreed to enter into Permission for Sensor Placement agreement (“The School Board Agreement”), a copy of which is attached as Exhibit 1, with The School Board in order to allow ShotSpotter to install sensors on The School Board buildings;

NOW, THEREFORE:

ShotSpotter agrees to perform all installation work under the School Board Agreement in accordance with requirements for such installation work specified in The School Board Agreement.

ShotSpotter agrees to reimburse City for insurance fees incurred by the City for the insurance required under The School Board Agreement. ShotSpotter also agrees to reimburse the City for all insurance premiums to be paid by the City for required insurance relating to the FPL Agreement. City shall mail the invoices to:

ShotSpotter, Inc.
Attn: Accounts Payable
7979 Gateway Blvd., Suite #210
Newark, CA 94560

Alternatively City mail e-mail the invoice to accounting@shotspotter.com.

Shotspotter hereby agrees to release, indemnify, defend, save and hold harmless the City, and The School Board of Miami-Dade County, Florida, its officers, directors and employees, from all claims, demands, liabilities and suits due to or caused by negligence of ShotSpotter for bodily injuries or death to person(s), service interruptions or damage to property resulting in connection with the performance of installation work and maintenance of the sensors and appurtenant equipment by ShotSpotter.

So that ShotSpotter may comply with its obligations in a timely manner, the City agrees to deliver to ShotSpotter, within two (2) business days, any notices or requests for action the City receives from The School Board.

IN WITNESS THEREOF, the parties have caused this Agreement to be executed by their duly authorized representatives on the date(s) shown below.

SHOTSPOTTER, INC.

By: _____

(Authorized Signature)

Name: _____

Title: _____

Date: _____

GREGG ROWLAND

SVP

11/26/12



CUSTOMER _____

By: _____

Dr. Crew, City Manager

Attest: _____

Ronetta Taylor, City Clerk

Date: _____

Approved for Legal Form and Sufficiency

Sonja K. Dickens, City Attorney